

HOUSE No. 5562

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 6, 2026.

The committee on Ways and Means, to whom was referred the Bill relative to Massachusetts winning global investment, talent, and innovation (House, No. 5527), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5562) [Bond Issue: General Obligation Bonds: \$425,100,000.00].

For the committee,

AARON MICHLEWITZ.

HOUSE No. 5562

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to economic development in the commonwealth.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to drive industry innovation and promote economic opportunity and job creation, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. To provide for a program of community development, economic
2 opportunities, support for local governments, increased industry innovation, job creation and the
3 promotion of economic reinvestment through the funding of infrastructure improvements the
4 sums set forth in section 2 for the several purposes and subject to the conditions specified in this
5 act, are hereby made available, subject to the laws regulating the disbursement of public funds.
6 These sums shall be in addition to any amounts previously authorized and made available for the
7 purposes of those items. The sums set forth in section 2 shall be made available until June 30,
8 2036.

9 SECTION 2.

10 EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT

Office of the Secretary

7002-8079 For a capital grant program to be administered by the executive office of economic development to provide grants to private businesses that are constructing or expanding commercial, industrial or manufacturing facilities in the commonwealth, which may include, but shall not be limited to: (i) the construction or expansion of facilities in a manner that eliminates or minimizes the use of fossil-fuel heating and cooling equipment, or incorporates other decarbonization measures that would not otherwise be incorporated into the facility design; (ii) the integration of design features that make a facility more resilient to the impacts of climate change, where such design features would not otherwise be economically feasible; and (iii) capital investments that support the creation of a significant number of new jobs in the commonwealth; provided, that the secretary of economic development shall issue program guidelines around the administration of the program which may include the administration of the program through a contract with the Massachusetts Development Finance Agency established in section 2 of chapter 23G of the General Laws, or any other appropriate quasi-governmental agency; and provided further, that grants shall be awarded in a manner that promotes geographic equity.....\$25,000,000

7002-8080 For the executive office of economic development to make grants to support the development and application of artificial intelligence technologies in strategically important sectors of the state's economy including, but not limited to, life sciences, healthcare, advanced manufacturing, climatetech, quantum, defense technology, transportation and robotics; provided that grants may be made from this item to public entities, non-profit entities and private businesses; and provided further, that, at the discretion of the secretary of economic development, grant funding may be administered by the Massachusetts Technology Park

34 Corporation, the Massachusetts Life Sciences Center, the Massachusetts Technology
 35 Development Corporation, or the Massachusetts Clean Energy Technology
 36 Center.....\$75,000,000

37 7002-8081 For the executive office of economic development to provide capital
 38 grants to support the construction, fit-out, and improvement of 1 or more sites where early stage
 39 and high growth business ventures are encouraged to establish operations in the commonwealth;
 40 provided that the executive office may contract with the Massachusetts Development Finance
 41 Agency, or other state authority as defined in section 1 of chapter 29 of the General Laws, to
 42 administer the grants or other financial assistance from this line item; and provided further, that
 43 grants shall be awarded in a manner that promotes geographic equity.....\$20,000,000

44 7002-8082 For the executive office of economic development for investments in
 45 capital assets or public infrastructure that promote economic growth, job creation, and talent
 46 recruitment and retention in the defense sector, including to support innovation in defense related
 47 technologies such as artificial intelligence, cybersecurity, robotics and autonomous systems,
 48 semiconductors and microelectronics, biosecurity, and advanced manufacturing; provided that
 49 grants from this line item may be made to public and private entities as determined by the
 50 executive office; and provided further that, at the discretion of the secretary of economic
 51 development, grant funding may be administered by the Massachusetts Technology Park
 52 Corporation, the Massachusetts Life Sciences Center, the Massachusetts Technology
 53 Development Corporation, the Massachusetts Development Finance Agency, and the
 54 Massachusetts Clean Energy Technology Center.....\$100,000,000

55 7002-8083 For the executive office of economic development to provide capital
56 grants to support food science, agricultural enterprises, resilient and sustainable food innovation,
57 food and agricultural technology, and related sectors; provided that the executive office may
58 contract with the Massachusetts Development Finance Agency, or other state authority as
59 defined in section 1 of chapter 29 of the General Laws, to administer the grants from this item;
60 and provided further, that grants shall be awarded in a manner that promotes geographic
61 equity.....\$10,000,000

62 7002-8084 For a competitive program to be administered by the Massachusetts
63 Technology Park Corporation established in section 3 of chapter 40J of the General Laws to
64 provide capital grants to support research and development of robotics technology including, but
65 not limited to, robotics incubation, testing, training, workforce development, research and
66 development and commercialization activities; provided, that grants may be made to nonprofit
67 entities, public or private universities or private business
68 entities.....\$25,000,000

69 7002-8085 For a grant program to cities, towns, regional organizations whose
70 membership is exclusively composed of municipal governments, municipal redevelopment
71 authorities or agencies or quasi-governmental agencies to support economic development in
72 Massachusetts, including, but not limited to, support for the vitality, activation, improvement and
73 competitiveness of downtowns, main streets, business districts, town centers, commercial
74 corridors, cultural districts and other walkable mixed-use areas; provided that the executive
75 office of economic development shall establish program requirements through regulations or
76 policy guidelines; provided further, that not less than \$200,000 shall be expended to the 2027
77 Boston Calling Music Festival for the purpose of added security to be held at the Harvard

78 Athletic Complex in the Allston section of the city of Boston; and provided further, that grants
79 shall be awarded in a manner that promotes geographic equity.....\$25,000,000

80 7002-8086 For the executive office of economic development to provide capital
81 grants to enhance the arts, culture and the creative economy in Massachusetts, including but not
82 limited to grants to cities and towns for public realm and streetscape improvements that enhance
83 downtown vibrancy, rehabilitation of historic districts, wayfinding and signage to support
84 cultural institutions, improvements to public gathering and performance spaces, and permanent
85 public art installations; provided that the executive office may contract with the Massachusetts
86 Development Finance Agency, or other state authority as defined in section 1 of chapter 29 of
87 the General Laws, to administer the grants from this item; and provided further, that grants shall
88 be awarded in a manner that promotes geographic equity.....\$25,000,000

89 7002-8087 For local economic development
90 grants.....\$100,000

91 EXECUTIVE OFFICE OF HOUSING AND LIVABLE COMMUNITIES

92 *Office of the Secretary*

93 7004-0092 For grants and technical assistance for municipalities for the conversion of
94 commercial properties into residential housing\$50,000,000

95 7004-0094 For the veterans supported housing initiative program established in
96 section 35 of chapter 23B of the General Laws; provided, that the executive office of housing
97 and livable communities shall partner with a qualified non-profit organization, as defined in said
98 section 35 of said chapter 23B, to implement and operate the program; and provided further, that

99 the qualified non-profit organization shall receive not more than \$20,000 in a 12-month period
100 for each eligible veteran.....\$20,000,000

101 7004-0095 For grants to support remediation efforts at former state-owned buildings;
102 provided, that grants shall be to support housing development projects on lands and in buildings
103 previously owned by the commonwealth and that require asbestos, lead or hazardous material
104 demolition and remediation; and provided further, that the secretary of housing and livable
105 communities, in consultation with the department of environmental protection, shall report to the
106 clerks of the house of representatives and the senate and the house and senate committees on
107 ways and means all grants awarded, including the amounts of the
108 grants.....\$50,000,000

109 SECTION 3. Section 204 of chapter 6 of the General Laws, as appearing in the 2024
110 Official Edition, is hereby amended by striking out, in lines 20 and 21, the words “but shall not
111 serve for longer than 8 consecutive years”.

112 SECTION 4. Section 16I of chapter 6A of the General Laws, as so appearing, is hereby
113 amended by striking out, in line 13, the words “housing and”.

114 SECTION 5. Said section 16I of said chapter 6A, as so appearing, is hereby further
115 amended by striking out, in line 20, the word “community” and inserting in place thereof the
116 following word:- economic.

117 SECTION 6. Section 35FF of chapter 10 of the General Laws is hereby repealed.

118 SECTION 7. Chapter 23 of the General Laws is hereby amended by adding the following
119 section:-

Section 28. (a) The secretary of labor and workforce development, in consultation with the secretary of education and the secretary economic development, shall produce a report every other year, in even-numbered years, on the current status of the commonwealth's job market and an analysis of the labor market need for the following 5-year period. The report and analysis shall provide necessary information to ensure the economic competitiveness of the commonwealth, including guiding decision-making within agencies related to policy adoption and development and state funding investments. The report shall include, but shall not be limited to:

(i) recommendations related to policies and investments to ensure the commonwealth has the necessary workforce to address any known or reasonably anticipated future labor market needs, including identification of business sectors poised to experience growth and anticipated gaps in filling employment need in such sectors;

(ii) a progress report on the status of career pathway programs in the commonwealth's high schools, institutions of higher education and workforce training programs in targeted industries; and

(iii) an analysis of data regarding the skills required for jobs in key industries as identified by the secretary of labor and workforce development or enumerated in line item 7002-8070 of section 2 of chapter 238 of the acts of 2024.

(b) Bi-annually, not later than December 31, the secretary of labor and workforce development, in consultation with the secretary of education and the secretary of economic development, shall make the report, and any recommendations, available to the public on the executive office of labor and workforce development's website and shall submit the report to: (i)

the governor; (ii) any relevant state agencies, as determined by the secretary of labor and workforce development; and (iii) the clerks of the house of representatives and the senate, the house and senate committees on ways and means and the chairs of the joint committee on labor and workforce development.

SECTION 8. Chapter 23B of the General Laws is hereby amended by adding the following section:-

Section 37. (a) The executive office of housing and livable communities shall establish a training program for members of local planning boards, special permit granting authorities and zoning boards of appeals to provide education and self-evaluation. The training program shall be an annual training that is offered at no cost to municipalities. In developing the training program, the executive office shall consult with the Massachusetts Association of Planning Directors, Inc., the Massachusetts Association of Regional Planning Agencies, the Massachusetts Chapter of the American Planning Association, Inc. and the Citizen Planner Training Collaborative. The training program shall cover: (i) special permits; (ii) subdivision control; (iii) variances; (iv) fair housing; and (v) any other laws that govern the role and responsibility of the local planning board. To the extent practicable, the training programs shall be offered online and in various locations throughout the commonwealth, at various times of the year.

(b) Each member of a local planning board, special permit granting authority and zoning board of appeals shall, not later than 60 days after becoming a board member, and every 2 years thereafter, complete the training program. Each member shall, upon completion of the training program, provide notice to the town or city clerk and such notice shall be retained for 6 years.

SECTION 9. Section 5 of chapter 23I of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 37, the word “3F” and inserting in place thereof the following word:- 3C.

SECTION 10. Subsection (b) of said section 5 of said chapter 23I, as so appearing, is hereby amended by adding the following 2 sentences:- The decision by the center to certify or deny certification of a life sciences company and the decision to award or deny any incentives pursuant to subsections (c) or (d), including, but not limited to, the amount of such award and any conditions or limitations on such authorization, shall be decisions that are in the sole discretion of the center. The decision by the center shall be final and shall not be subject to administrative appeal or judicial review pursuant to chapter 30A or give rise to any other cause of action or legal or equitable claim or remedy.

SECTION 11. Said section 5 of said chapter 23I, as so appearing, is hereby further amended by striking out subsection (d) and inserting in place thereof the following subsection:-

(d)(1) There shall be established a life sciences tax incentive program. The center, in consultation with the department, may authorize incentives, including incentives carried forward or refunded pursuant to subsections (m), (n) and (r) of section 6 of chapter 62, paragraph 17 of section 30 of chapter 63, section 31M of said chapter 63, subsection (f) of section 38 of said chapter 63, subsection (k) of section 38M of said chapter 63, section 38U of said chapter 63, section 38V of said chapter 63, section 38W of said chapter 63, section 38CC of said chapter 63, the second paragraph of subsection (c) of section 42B of said chapter 63 and subsection (xx) of section 6 of chapter 64H in a cumulative amount, including the current year cost of incentives allowed in previous years, that shall not exceed \$40,000,000 annually. The center may authorize

185 incentives to a life sciences company that spans multiple years if the total amount of incentives
186 due to be taken in any single calendar year does not exceed the applicable cap. The center shall
187 determine the amount and type of any such incentive to authorize and the schedule on which
188 those incentives may be claimed. The center may, in consultation with the department, limit any
189 incentive to a specific dollar amount or time duration or in any other manner deemed appropriate
190 by the department; provided, however, that the department shall only allocate any such
191 incentives among commonwealth certified life sciences companies pursuant to subsection (b)
192 and shall award such tax incentives pursuant to subsection (c).

193 (2) The center shall provide an estimate to the secretary of administration and finance of
194 the tax cost of extending benefits to a proposed project before certification, as approved by the
195 commissioner of revenue, based on reasonable projections of project activities and costs. Tax
196 incentives shall not be available to a certified life sciences company unless expressly granted by
197 the secretary of administration and finance in writing.

198 (3) When authorizing incentives pursuant to this subsection, the center shall require the
199 certified life sciences company to execute a written agreement setting forth the terms and
200 conditions on which the tax credits may be claimed. The written agreement shall set forth: (i) the
201 company's permanent new or retained full-time employees; (ii) commitments over 1 or more
202 years; (iii) a schedule on which the credits may be claimed; and (iv) other such terms or
203 conditions as the center may, in its discretion, require. The written agreement may, at the
204 center's discretion, limit or restrict the right of the certified life sciences company to carry
205 unused tax credits forward to subsequent tax years.

SECTION 12. Subsection (e) of said section 5 of said chapter 23I, as so appearing, is hereby amended by striking out paragraphs (1) and (2) and inserting in place thereof the following 2 paragraphs:-

(1) Certification granted pursuant to subsection (b) shall be valid starting with the tax year in which certification is granted. Each certified life sciences company shall file an annual report with the center certifying whether the company has achieved the job commitments, met the specific targets established in the proposal pursuant to subclause (A) of clause (i) of said subsection (b) and other material obligations or representations set forth in the written agreement pursuant to paragraph (3) of subsection (d).

(2) The certification of a life sciences company may be revoked by the center after an investigation and determination that representations made by the certified life sciences company in its certification proposal or written agreement pursuant to paragraph (3) of subsection (d) are materially at variance with the conduct of the life sciences company after receiving certification; provided, however, that the center shall review the certified life sciences company not less than annually; and provided further, that the center shall have the discretion to determine whether the material variance shall result in revocation of a project certification, taking into account: (i) the conduct of the certified life sciences company subsequent to the project certification; (ii) the extent to which the material variance is the result of unforeseen conditions that are outside the control of the certified life sciences company; and (iii) other considerations as the center shall establish by policy. If the center revokes certification of a life sciences company, the center shall provide its reasons for the decision in writing to the secretary of administration and finance, the commissioner of revenue and the clerks of the house of representatives and the senate, who shall forward the same to the house and senate committees on ways and means, the joint committee on

revenue and the joint committee on economic development and emerging technologies. The center shall post these reasons on the center's website.

SECTION 13. Said subsection (e) of said section 5 of said chapter 23I, as so appearing, is hereby further amended by striking out paragraph (4) and inserting in place thereof the following 2 paragraphs:-

(4) In connection with an award of refundable jobs credits pursuant to subsection (r) of section 6 of chapter 62 or section 38CC of chapter 63, if the center finds that the certified life sciences company is in material variance with the terms of the written agreement entered into under paragraph (3) of subsection (d), the center may rescind tax credits awarded but not yet claimed and request that the department recapture tax credits already claimed. The center may provide the certified life sciences company with reasonable opportunity to cure the material variance and rescind or recapture tax credits in proportion to the company's compliance, as determined by the center. Tax credits shall be rescinded or recaptured by sending a written notice to the certified life sciences company and the department. Where applicable, the department shall recapture tax credits in pursuant to said subsection (r) of said section 6 of said chapter 62 or said section 38CC of said chapter 63.

(5) Nothing in this subsection shall limit any legal remedies available to the commonwealth against any certified life sciences company.

SECTION 14. Said section 5 of said chapter 23I, as so appearing, is hereby further amended by striking out, in lines 149 and 150, the word "independent".

249 SECTION 15. Section 1 of chapter 23J of the General Laws, as so appearing, is hereby
250 amended by striking out the definition of “Fund” and inserting in place thereof the following
251 definition:-

252 “Fund”, the Climatetech Investment Fund established in section 15.

253 SECTION 16. Said section 1 of said chapter 23J, as so appearing, is hereby further
254 amended by striking out the definition of “Trust fund”.

255 SECTION 17. Section 2 of said chapter 23J, as so appearing, is hereby amended by
256 striking out, in lines 13 to 15, inclusive, the words “, in collaboration with the Massachusetts
257 Renewable Energy Trust Fund established in section 4E of chapter 40J,”.

258 SECTION 18. Subsection (e) of said section 2 of said chapter 23J, as so appearing, is
259 hereby amended by striking out the second paragraph.

260 SECTION 19. Section 3 of said chapter 23J, as so appearing, is hereby amended by
261 striking out, in lines 65 and 66, the words “Massachusetts Alternative and Climatetech
262 Investment Trust Fund” and inserting in place thereof the following word:- fund.

263 SECTION 20. Subsection (a) of said section 3 of said chapter 23J, as so appearing, is
264 hereby amended by striking out paragraphs (26) to (32), inclusive, and inserting in place thereof
265 the following 5 paragraphs:-

266 (26) to promote programs and investments that lead to pathways towards economic self-
267 sufficiency for low and moderate-income individuals and communities in the climatetech
268 industry;

(27) to research and establish, if the center so chooses, the Massachusetts Hydrogen and Fuel Cell Institute, to be housed at the Worcester Polytechnic Institute, and to serve as a joint venture among institutes of higher education in the commonwealth providing a focal point for research, education and commercialization activities in the hydrogen fuel cell sector; provided, however, that said institute responsibilities may include, but shall not be limited to: (i) working with the University of Massachusetts and private higher education institutions in the commonwealth to coordinate and strengthen hydrogen and fuel cell research activities in the commonwealth; (ii) strengthening collaborative research and development between universities and companies located within the commonwealth; (iii) addressing critical technological barriers facing the hydrogen and fuel cell companies; (iv) strengthening existing educational programs and introducing new curriculum in Massachusetts universities to produce graduates who are conversant in hydrogen and fuel cell technologies; and (v) promoting partnerships between Massachusetts universities and companies to jointly demonstrate hydrogen and fuel cell technologies and attract greater amounts of federal funding to the commonwealth;

(28) to allocate, if the center so chooses, up to \$2,000,000 annually for 5 years for the Massachusetts Hydrogen and Fuel Cell Institute; provided, however, that said funding shall begin in the fiscal year that said institute shall be established and shall end in the fifth fiscal year following the establishment of said institute;

(29) to establish, if the center so chooses, a program to be known as the entrepreneurial fellowship program, which shall award grants to entrepreneurs from business sectors other than climatetech sectors to enroll in programs to foster knowledge and expertise of climatetech technology; provided, however, that the climatetech technology programs shall be based upon intensive technology, market and policy curriculum; and provided further, that the center shall

292 establish public-private partnerships and enter into contribution agreements with commonwealth-
293 based companies and venture capitalists to support programs designed to mentor and train
294 entrepreneurs from other business sectors in the areas of climatetech technology and
295 development to increase investment in the commonwealth's climatetech sector; and

296 (30) to serve as a focal point, and provide state-wide coordination, for offshore wind
297 initiatives; provided, that said responsibilities shall include, but shall not be limited to: (i)
298 working with public and private higher education institutions in the commonwealth to coordinate
299 and strengthen offshore wind research activities in the commonwealth; (ii) strengthening
300 collaborative research and development between higher education institutions and companies
301 located within the commonwealth; (iii) addressing critical barriers facing offshore wind
302 companies in the commonwealth; (iv) assessing and reporting on infrastructure requirements that
303 support the growing offshore wind industry in the commonwealth; (v) supporting the growth of
304 an offshore wind supply chain in the commonwealth; (vi) supporting and developing offshore
305 wind training initiatives; and (vii) supporting and growing offshore wind innovation and
306 entrepreneurship in the commonwealth.

307 SECTION 21. Section 5 of said chapter 23J, as so appearing, is hereby amended by
308 striking out, in lines 16 to 19, inclusive, the words "and the trust fund over the previous fiscal
309 year, the ability of the fund to meet the requirements in section 35FF of chapter 10 and the
310 ability of the trust fund to meet the requirements in section 9" and inserting in place thereof the
311 following words:- over the previous fiscal year, the ability of the fund to meet the requirements
312 in section 15.

313 SECTION 22. Section 9 of said chapter 23J is hereby repealed.

SECTION 23. Section 11 of said chapter 23J, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 2 and 3, the words “the fund and the trust fund” and inserting in place thereof the following words:- any funds administered by the center under this chapter.

SECTION 24. Section 15 of said chapter 23J, as so appearing, is hereby amended by striking out, in line 6, the words “and (iii)” and inserting in place thereof the following words:- (iii) all amounts collected under section 20 of chapter 25; and (iv).

SECTION 25. Subsection (b) of section 16 of said chapter 23J, as so appearing, is hereby amended by adding the following 2 sentences:- The decision by the center to certify or deny certification of a climatetech company and the decision to authorize or deny any incentives pursuant to subsection (d), including, but not limited to, the amount of such incentive and any conditions or limitations on such authorization, shall be decisions that are in the sole discretion of the center. The decisions by the center shall be final and shall not be subject to administrative appeal or judicial review pursuant to chapter 30A or give rise to any other cause of action or legal or equitable claim or remedy.

SECTION 26. Subsection (c) of said section 16 of said chapter 23J, as so appearing, is hereby amended by striking out paragraph (1) and inserting in place thereof the following paragraph:-

(1) Certification granted pursuant to subsection (b) shall be valid starting with the tax year in which certification is granted. Each certified climatetech company shall file an annual report with the center certifying whether the company has achieved the job commitments, met the specific targets established in the proposal pursuant to clause (i) of subsection (b) and, if not,

336 detailing its progress towards those targets, and other material obligations or representations set
337 forth in the written agreement pursuant to paragraph (3) of subsection (d).

338 SECTION 27. Said section 16 of said chapter 23J, as so appearing, is hereby further
339 amended by inserting after the word “proposal”, in line 56, the following words:- or written
340 agreement pursuant to paragraph (3) of subsection (d).

341 SECTION 28. Subsection (c) of said section 16 of said chapter 23J, as so appearing, is
342 hereby amended by striking out paragraph (3) and inserting in place thereof the following 2
343 paragraphs:-

344 (3) In connection with an award of refundable jobs credits pursuant to subsection (hh) of
345 section 6 of chapter 62 or section 38TT of chapter 63, if the center finds that the certified
346 climatetech company is in material noncompliance with the terms of the written agreement
347 entered into pursuant to paragraph (3) of subsection (d), then the center may rescind tax credits
348 awarded but not yet claimed and request that the department of revenue recapture tax credits
349 already claimed. The center shall have discretion to provide the certified climatetech company
350 with reasonable opportunity to cure the material noncompliance and rescind or recapture tax
351 credits in proportion to the company’s compliance, as determined by the center. Tax credits shall
352 be rescinded or recaptured by sending a written notice to the certified climatetech company and
353 the department of revenue. The department of revenue shall recapture tax credits pursuant to said
354 subsection (hh) of said section 6 of said chapter 62 or said section 38TT of said chapter 63,
355 where applicable.

356 (4) Nothing in this subsection shall limit any legal remedies available to the
357 commonwealth against any certified climatetech company.

SECTION 29. Subsection (d) of said section 16 of said chapter 23J, as so appearing, is hereby amended by striking out paragraph (1) and inserting in place thereof the following paragraph:-

(1) The center, in consultation with the department of revenue, may authorize incentives, including those established in subsections (gg) and (hh) of section 6 of chapter 62, subsection (k) of section 38M of chapter 63, section 38RR of said chapter 63, section 38SS of said chapter 63, section 38TT of said chapter 63, the second paragraph of subsection (c) of section 42B of said chapter 63 and subsection (yy) of section 6 of chapter 64H, that shall not exceed \$30,000,000 annually. The center may authorize incentives to a climatetech company that span multiple years if the total amount of incentives due to be taken in any single calendar year does not exceed the applicable cap. The center shall determine the amount and type of any such incentive to authorize and the schedule on which those incentives may be claimed. The center, in consultation with the department of revenue, may limit the incentives to a specific dollar amount, time duration or in any other manner deemed appropriate by the department of revenue; provided, however, that the department of revenue shall only allocate the incentives among certified climatetech companies.

SECTION 30. Said subsection (d) of said section 16 of said chapter 23J, as so appearing, is hereby further amended by adding the following paragraph:-

(3) When authorizing incentives pursuant to this subsection, the center shall require the certified climatetech company to execute a written agreement that sets forth the terms and conditions for which the tax credits may be claimed. The written agreement shall set forth: (i) the company's permanent new or retained full-time employees; (ii) commitments over 1 or more

years; (iii) a schedule on which the credits may be claimed; and (iv) other such terms or conditions as the center may, in its discretion, require. The written agreement may, at the center’s discretion, limit or restrict the right of the certified climatetech company to carry unused tax credits forward to subsequent tax years.

SECTION 31. Said chapter 23J is hereby further amended by adding the following section:-

Section 17. (a)(1) For the purposes of this section, the terms “department”, “distribution company” and “electric company” shall, unless the context clearly requires otherwise, have the meanings as defined in section 1 of chapter 164.

(2) For the purposes of this section, the words “gridtech solution” shall, unless the context clearly requires otherwise, mean novel technologies, novel applications of technologies and other innovative approaches, including, but not limited to, novel retail rate designs, distributed energy resource wiring configurations or customer energy solutions.

(b) There shall be a gridtech deployment advisory board. The board shall: (i) explore opportunities for public-private partnerships to test or deploy at-scale gridtech; (ii) facilitate connections between gridtech companies and relevant distribution companies; and (iii) identify and propose solutions to barriers in the existing practices of an electric company or the department; provided, that such solutions are permissible under state law. The advisory board shall prioritize, where appropriate, the deployment of gridtech that reduces electric distribution and transmission grid costs and supports achievement of the statewide greenhouse gas emissions limits and sublimits chapter 21N.

(c) The gridtech deployment advisory board established pursuant to subsection (b) shall be comprised of: (i) the chief executive officer of the center, or their designee; (ii) the commissioner of the department of energy resources, or their designee; (iii) the chair of the department, or their designee; (iv) the secretary of the executive office of economic development, or their designee; (v) 1 representative from the Massachusetts Technology Development Corporation established in section 2 of chapter 40G; (vi) 1 representative from each electric company; (vii) 1 representative from the Massachusetts Municipal Wholesale Electric Company; (viii) 1 representative from a municipal electric distribution company or an organization that represents municipal electric distribution companies; and (ix) 3 representatives from organizations involved or familiar with the development, financing or implementation of gridtech solutions. The board shall be co-chaired by the chief executive officer of the center, or their designee, and a member of an electric company serving on the advisory board. All representatives shall, unless otherwise provided, be appointed by the chief executive officer of the center.

(d) The electric companies shall file for review and approval with the department any process approved by the board to review, on an expedited basis, requests for limited waivers of prior department orders that will alleviate gridtech deployment barriers.

(e) The department shall approve any process filed under subsection (d) if it determines that such process is in the public interest, including, but not limited to, reducing electric grid costs and supporting achievement of the statewide greenhouse gas emissions limits and sublimits pursuant to chapter 21N.

(f) Annually, the board shall identify barriers to the deployment of discrete gridtech technologies and applications in existing utility practices and orders issued by the department, as well as potential solutions to those barriers and, as applicable, limited waivers of department orders to alleviate the identified barriers. The electric companies shall seek approval from the department of any limited waivers identified and approved by the board so long as they are consistent with the process approved by the department under subsection (e).

(g) Nothing in this section shall preclude members of the board from testing, funding or scaling gridtech solutions outside of the processes outlined in this section.

SECTION 32. Section 20 of chapter 25 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out subsection (a) and inserting in place thereof the following subsection:-

(a) The department shall require a mandatory charge of 0.5 mill per kilowatt-hour for all electricity consumers, except those served by a municipal lighting plant that does not supply generation service outside its own service territory or does not open its service territory to competition at the retail level. All revenues generated by the mandatory charge shall be deposited into the Climatetech Investment Fund, established in section 15 of chapter 23J.

SECTION 33. Said section 20 of said chapter 25, as so appearing, is hereby further amended by striking out, in line 22, the words “Massachusetts Renewable Energy Trust” and inserting in place thereof the following words:- Climatetech Investment.

SECTION 34. Said section 20 of said chapter 25, as so appearing, is hereby further amended by inserting after the word “fund”, in line 24, the following words:- revenues from mandatory charges held by the fund.

SECTION 35. Said section 20 of said chapter 25, as so appearing, is hereby further amended by striking out, in line 28, the word “collaborative” and inserting in place thereof the following words:- Massachusetts clean energy technology center.

SECTION 36. Said section 20 of said chapter 25, as so appearing, is hereby further amended by striking out, in line 42, the word “trust”.

SECTION 37. Section 2EEEEEE of chapter 29 of the General Laws, as so appearing, is hereby amended by inserting after the word “Matching”, in line 28, the following words:- , Fiscal Resilience.

SECTION 38. Said section 2EEEEEE of said chapter 29, as so appearing, is hereby further amended by striking out, in line 73, the words “and (iii)” and inserting in place thereof the following words:- (iii) protecting the commonwealth from the elimination, reduction or material delay of federal funds upon a determination by the secretary that the elimination, reduction or material delay of such federal funds would materially impact public health, safety or welfare or the fiscal stability of the commonwealth or any of its political subdivisions, in accordance with guidance issued by the executive office for administration and finance; (iv) improving the financial stability of hospitals and community health centers in the commonwealth that provide health care to low-income, uninsured or underinsured residents, including by transferring any amounts in the fund to the Health Safety Net Trust Fund established in section 66 of chapter 118E, in accordance with guidance issued by the executive office for administration and finance in consultation with the executive office of health and human services; (v) funding pay-as-you-go capital for any capital project or program up to the amount otherwise authorized by the general court for such project or program in chapter 238 of the acts

466 of 2024, in accordance with guidance issued by the executive office for administration and
467 finance; and (vi).

468 SECTION 39. Said section 2EEEEEE of said chapter 29, as so appearing, is
469 hereby further amended by inserting after the word “Matching”, in line 78, the following words:-
470 , Fiscal Resilience.

471 SECTION 40. Said section 2EEEEEE of said chapter 29, as so appearing, is hereby
472 further amended by inserting after the word “Matching”, in line 85, the following words:- , Fiscal
473 Resilience.

474 SECTION 41. Section 1A of chapter 40A of the General Laws, as so appearing, is hereby
475 amended by inserting after the definition of “Public service corporation” the following
476 definition:-

477 “Site plan review”, the review and approval process under a municipality’s zoning
478 ordinance or by-law that establishes criteria for the layout, safety and impacts of a proposed use
479 or development, and whether a proposed use of land or structures is in compliance with
480 reasonable performance standards pursuant to section 7A; provided, however, that site plan
481 review, and the performance standards applicable thereto, in connection with any protected use
482 pursuant to section 3 or any other section of this chapter shall be limited to the extent required by
483 such section.

484 SECTION 42. Said chapter 40A is hereby further amended by inserting after section 3B
485 the following 2 sections:-

Section 3C. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Adaptive reuse”, the conversion of an existing structure from the use for which it was constructed to multi-family housing or mixed-use development by maintaining the elements of the structure and adapting such elements to the new use.

“Board of appeals”, a municipal zoning board of appeals established pursuant to section 12.

“Bus station”, a location serving as a point of embarkation for any bus operated by a transit authority, including, but not limited to, the Massachusetts Bay Transportation Authority Silver Line.

“Commercial conversion”, the use of land or structures for the creation and operation of any of the following: (i) adaptive reuse; (ii) new construction of multi-family housing; or (iii) new construction of mixed-use development.

“Commercial use”, the use of land or structures for non-residential uses, including, but not limited to: (i) offices; (ii) retail; (iii) dining establishments; or (iv) other similar uses as may be provided through regulation by the executive office in consultation with the executive office of economic development.

“Commercially zoned lot”, a lot where zoning allows commercial use as-of-right or by special permit.

505 “Commuter rail station”, any commuter rail station operated by a transit authority with
506 year-round service with trains departing at regular time intervals, rather than intermittent,
507 seasonal or event-based service.

508 “Executive office”, the executive office of housing and livable communities.

509 “Ferry terminal”, the location where passengers embark and disembark from a ferry
510 service with year-round service with ferries departing at regular time intervals, rather than
511 intermittent, seasonal or event-based service.

512 “Financially infeasible”, to add unreasonable costs or unreasonably diminish the
513 economic feasibility of a commercial conversion by means of a condition or requirement
514 imposed by the board of appeals.

515 “Local board”, any local board or official, including, but not limited to, any: (i) board of
516 survey; (ii) board of health; (iii) board of subdivision control appeals; (iv) planning board; (v)
517 conservation commission; (vi) historical commission; (vii) water, sewer or other commission;
518 (viii) district, fire, police, traffic or other department; (ix) building inspector or similar official;
519 or (x) board, city council or selectboard; provided, that all boards, regardless of their
520 geographical jurisdiction or their source of authority, including boards established pursuant to
521 any general or special law, shall be a local board if they perform functions usually performed by
522 locally created boards.

523 “Local contribution”, an incentive provided by a city or town for commercial conversion
524 on a commercially zoned lot pursuant to subsection (c).

“Subway station”, any of the stops along the rapid transit system of a transit authority, including, but not limited to, the Massachusetts Bay Transportation Authority red line, green line, orange line or blue line, and any extensions or additions to such lines.

“Transit authority”, the Massachusetts Bay Transportation Authority established in section 2 of chapter 161A, or any other local or regional transit authority established pursuant to section 3 or section 14 of chapter 161B.

“Transit station”, a subway station, commuter rail station, ferry terminal or bus station.

(b)(1) A city or town subject to this chapter may, pursuant to section 5, amend zoning to allow commercial conversion as of right on every commercially zoned lot; provided, that a city or town that adopts commercial conversion as of right zoning shall provide not less than 1 adaptive reuse incentive pursuant to subsection (c); and provided further, that commercial conversion as of right zoning established pursuant to this section shall provide at a minimum, but shall not be limited to, the following:

(A) for adaptive reuse: (i) allowing existing building setbacks to remain and be considered a legal nonconforming use pursuant to section 6; provided, however, that a municipality may prohibit any additional encroachments into any nonconforming setback, unless otherwise required pursuant to clause (ii) or otherwise allowed under zoning; (ii) allowing such development to exceed the existing footprint of the building to accommodate upgrades related to building code, fire code and utility requirements; (iii) allowing such development to exceed the maximum height of the existing zoning district if the structure in existence prior to the adaptive reuse exceeds the maximum height of the existing zoning district; (iv) exempting multi-family housing, new multi-family housing and new-construction of mixed-use developments from

547 residential parking requirements that exceed 1 parking space per residential dwelling unit;
548 provided, that such commercial conversion projects on lots that are partially or entirely located
549 within a 0.5 mile radius of a transit station shall be exempt from any residential parking
550 requirements;

551 (B) A city or town may require that adequate infrastructure, including, but not limited to,
552 roads and water and sewage systems, shall be available or provided to support commercial
553 conversion;

554 (C) A city or town may restrict development on lots where industrial and manufacturing
555 uses are permitted and where such uses have a substantial and demonstratable likelihood of
556 resulting in impacts that are incompatible with residential use, such as air, noise or odor; and

557 (D) A city or town may impose affordable housing requirements on commercial
558 conversion through an inclusionary zoning ordinance or bylaw to the extent that such affordable
559 housing requirement does not require more than 10 per cent of the residential units within a
560 commercial conversion to be subject to such affordable housing requirement and such
561 requirement does not limit eligibility to households earning not more than 80 per cent area
562 median income; provided, that the executive office, in its discretion, may approve for some or all
563 of the affordable units upon request by a city or town as to an individual project in a form as may
564 be designated by the executive office: (i) a greater percentage of affordable units; (ii) more than
565 10 per cent of the residential units to be subject to such affordable housing requirement; or (iii)
566 eligibility for a greater percentage of area median income.

567 (2) Notwithstanding any general or special law, rule or regulation to the contrary, a
568 commercial conversion that is adaptive reuse under this section shall comply with the base

energy code pursuant to the state building code, 780 C.M.R., and shall not be required to comply with the specialized stretch energy code established pursuant to section 6 of chapter 25A or the municipal opt-in specialized code established pursuant to section 6 of chapter 25A.

(3) Notwithstanding sections 5, 8 and 9, a city or town that has adopted commercial conversion as of right zoning pursuant to paragraph (1) may establish a streamlined process for a petitioner or applicant seeking commercial conversion of a commercially zoned lot to submit to the board of appeals a single application for approval of a commercial conversion in lieu of separate applications to the applicable local boards. Such process shall provide, at a minimum, but shall not be limited to, the following:

(i) The board of appeals shall notify each local board, as applicable, of the filing of an application under this paragraph by sending a copy thereof to such local boards for their recommendations and shall, within 30 days of receipt of the application, hold a public hearing in conformance with section 11;

(ii) The board of appeals shall request representatives of local boards as are deemed necessary or helpful in making its decision upon an application to attend the hearing and shall, notwithstanding section 7, have the same power to issue permits or approvals as any local board or official who would otherwise act with respect to such application, including, but not limited to, the power to attach to said permit or approval conditions and requirements that are not financially infeasible;

(iii) The board of appeals, in making its decision on an application, shall take into consideration the recommendations of the local boards and shall have the authority to use the testimony of consultants;

(iv) The board of appeals shall render a decision, based upon a majority vote of said board, within 60 days of receiving an application; and

(v) If a hearing is not convened or a decision is not rendered within the time allowed under clause (iv), unless the time has been extended by mutual agreement between the board of appeals and the applicant, the application shall be deemed to have been allowed and the permit or approval shall issue.

(c) A city or town that adopts commercial conversion as of right zoning pursuant to this section may provide any of the following local contributions: (i) a tax increment exemption for adaptive reuse pursuant to section 5P of chapter 59; (ii) a preference for commercial conversion projects for assistance under a community preservation fund established pursuant to section 7 of chapter 44B; (iii) a preference for commercial conversion projects for assistance under a municipal affordable housing trust fund established pursuant to section 55C of chapter 44; (iv) adoption of a streamlined approval process pursuant to paragraph (3) of subsection (b); or (v) any other local contributions as determined by the executive office.

(d) The executive office may establish additional incentives for cities and towns that adopt commercial conversion as of right zoning and a local contribution pursuant to this section. Such incentives for cities and towns may include, but shall not be limited to, a preference for financial assistance pursuant to section 27 ½ of chapter 23B, a preference for tax credits authorized pursuant to subsection (ee) of section 6 of chapter 62 and section 38OO of chapter 63 and other incentives identified by the executive office in consultation with the executive office of economic development and the executive office for administration and finance.

(e) The executive office may, in consultation with the executive office of economic development, promulgate regulations for the implementation and administration of this section.

(f) A city or town that has adopted commercial conversion as of right zoning pursuant to paragraph (1) of subsection (b) above may repeal such adoption pursuant to section 5.

Section 3D. (a) For purposes of this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Land owned by a religious sect or denomination”, a lot or land, buildings or structures owned by or held in trust for the use of a religious sect or denomination for not less than 3 years.

“Religious sect or denomination”, an organization organized predominantly for religious purposes, whether incorporated or unincorporated, and shall be: (i) exempt from taxation under section 501(c)(3) of the Internal Revenue Code of 1986, as amended, based on its status as a religious or apostolic association or corporation; (ii) an organization recognized by the department of revenue as a religious organization exempt from taxation pursuant to section 5 of chapter 59; or (iii) any other organization that qualifies as a religious sect or denomination for purposes of section 3.

(b)(1) No zoning ordinance or by-law shall prohibit, unreasonably restrict or require a special permit or other discretionary zoning approval for the use of land owned by a religious sect or denomination for multifamily housing.

(2) Multifamily housing constructed pursuant to this section shall not be subject to any municipal ordinances, bylaws or regulations, or other municipal development standards or conditions of approval, that exceed applicable requirements of state law or regulation.

(c)(1) Multifamily housing shall be allowed as of right on land owned by a religious sect or denomination if the structures on the land meet the dimensional requirements pursuant to this subsection; provided, however, that if the underlying zoning ordinance or by-law permits greater density or height, or lower setbacks, the requirements under such zoning ordinance or by-law shall govern.

(2) Gross density shall be allowed at up to the greater of: (i) 30 units per acre; provided, that the housing shall include not less than 20 per cent of the units affordable to families and individuals with incomes of not more than 80 per cent of the area median income; or (ii) not less than 30 units per acre but not more than 50 units per acre if the housing includes either: (A) at least 25 per cent of the units affordable to families and individuals with incomes of not more than 80 per cent of the area median income; or (B) not less than 20 per cent of the units affordable to families and individuals with incomes of not more than 60 per cent of the area median income.

(3)(A) Structures on the land owned by a religious institution may have a height of up to the greater of: (i) the height of existing structures prior to development pursuant to this section; (ii) 4 full stories; (iii) 45 feet; or (iv) any greater number of stories or building height allowed under the zoning ordinance or by-law for the zoning district in which the land is located.

(B) A minimum of 15 feet of side yard setback and 15 feet of rear yard setback shall apply unless the underlying zoning ordinance or by-law requires a lower minimum setback.

(d) No off-street parking spaces shall be required for multifamily housing developed on land owned by a religious sect or denomination that is located not more than 0.5 miles from a commuter rail station, ferry terminal or bus station and not more than 1 parking space per unit

655 shall be required for multifamily housing developed on land that is more than 0.5 miles from a
656 commuter rail station, ferry terminal or bus station.

657 (e) All multifamily housing developed on land owned by a religious sect or denomination
658 under this section shall comply with state water resources regulations and standards established
659 by the department of environmental protection.

660 (f) No local occupancy preference shall be permitted in excess of 20 per cent of the
661 multifamily housing units developed on land owned by a religious sect or denomination pursuant
662 to this section. Any local preference shall comply with all applicable federal and state fair
663 housing laws and shall include current residents, employees of the municipality and local
664 businesses, including persons hired to work in the municipality and households with children
665 attending the municipality's schools.

666 (g) Not more than 2 housing units or 5 per cent of the total multifamily housing units
667 developed under this section, whichever is less, may be set aside for occupancy by employees of
668 the religious sect or denomination owning the land.

669 (h) The executive office of housing and livable communities may promulgate regulations
670 or guidelines, as necessary, to implement this section.

671 SECTION 43. Section 3C of said chapter 40A, inserted by section 42, is hereby amended
672 by striking out subsection (c) and inserting in place thereof the following subsection:-

673 (c) A city or town that adopts commercial conversion as of right zoning pursuant to this
674 section may provide any of the following local contributions: (i) a tax increment exemption for
675 adaptive reuse pursuant to section 5P of chapter 59; (ii) adoption of a streamlined approval

process pursuant to paragraph (3) of subsection (b); or (iii) any other local contributions as determined by the executive office.

SECTION 44. Section 5 of said chapter 40A, as appearing in the 2024 Official Edition, is hereby amended by inserting after the word “appeals”, in line 6, the following words:- , a mayor.

SECTION 45. Said section 5 of said chapter 40A, as so appearing, is hereby further amended by striking out, in line 92, the words “or (c) open-space residential development” and inserting in place thereof the following words:- (c) open-space residential development; or (d) commercial conversion pursuant to section 3C.

SECTION 46. Section 6 of said chapter 40A, as so appearing, is hereby amended by inserting after the word “to”, in line 13, the following words:- a structure used for commercial conversion pursuant to section 3C, to the extent allowed by section 3C or.

SECTION 47. Said section 6 of said chapter 40A, as so appearing, is hereby further amended by striking out, in lines 34 to 38, inclusive, the words “shall conform to any subsequent amendment of the zoning ordinance or by-law or of any other local land use regulations unless the use or construction is commenced within a period of 3 years after the issuance of the special permit or site plan approval and” and inserting in place thereof the following words:- or a permit for commercial conversion issued pursuant to section 3C shall conform to any subsequent amendment of the zoning ordinance or by-law or of any other local land use regulations unless the use or construction is commenced within a period of 3 years after the issuance of the special permit, site plan approval or permit for commercial conversion.

SECTION 48. Said chapter 40A is hereby further amended by inserting after section 7 the following section:-

Section 7A. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Bulk and height of structures”, the articulation and roof lines of structures; provided, however, that performance standards governing bulk and height of structures shall not be more restrictive than the dimensional requirements set forth in the ordinance or by-law, nor require specific building materials. Articulation, as used herein, shall refer to the following strategies to address building massing: wall offsets, height variation, wall setbacks, accent lines, stepbacks or such other industry standard types of articulation as may be proposed by the petitioner.

“Designated authority”, the local municipal board, committee or officials designated in the zoning ordinance or by-law to conduct site plan review.

“Performance standards”, written municipal zoning regulations, published industry standards and best practices, applicable to site plans and relative to traffic circulation and safety, pedestrian safety and access, off-street parking and loading, emergency vehicle access, stormwater drainage, screening, bulk and height of structures, exterior lighting and storage or other outdoor service areas.

(b) Substantive provisions of site plan review, including content of submittal requirements and applicable performance standards, governing site plan review and approval by the designated authority or authorities shall be as set forth within a local ordinance or by-law adopted pursuant to section 5.

(c) Performance standards shall be reasonably definite and objective. No zoning by-law or ordinance shall include performance standards governing the aesthetics of structures. The designated authority may, where such action is in the public interest and not inconsistent with the

intent and purpose of this section, waive strict compliance with the performance standards for site plan review. The designated authority may adopt, and from time to time amend, written procedural rules and regulations to implement the local site plan review ordinance or by-law, including provisions for the imposition of reasonable fees for the employment of outside consultants in the same manner as set forth in section 53G of chapter 44.

(d)(1) A zoning ordinance or by-law may establish applicability standards for projects that are subject to site plan review, which may include a category of projects that shall be subject to a minor or administrative site plan review process.

(2) The zoning ordinance or by-law may require a public hearing in accordance with section 11 for projects that meet or exceed specified thresholds under the zoning ordinance or by-law.

(3) The decision of the designated authority for a use allowed as of right, or for a use requiring a special permit but reviewed by a separate designated authority, shall require a simple majority vote of the designated authority and shall be made within the time limits prescribed by ordinance or by-law, not to exceed 90 days from the date of filing of a complete application or such extended time as may be agreed in writing by the petitioner. The submission and review process for a site plan required in connection with the issuance of a special permit, and subject to review by the same permit granting authority as the special permit application, shall be conducted with the review of the special permit application in a coordinated process and may require the same quantum of vote required for approval of a special permit.

(4) The ordinance or by-law may establish the designated authority to be the building commissioner, director of planning or other municipal official who coordinates administrative

site plan review with other municipal employees, in which instance there shall be no vote requirement for site plan review.

(5) Any appeal from administrative site plan review shall be in accordance with section 17 unless an ordinance or by-law first provides for an appeal to another public body of the municipality. In no instance shall the issuance or denial of a building permit be a prerequisite to the filing of a civil action under this section.

(e) Site plan review shall impose only those conditions that are necessary to ensure substantial compliance of the proposed use of land or structures with the requirements of the zoning ordinance or by-law; provided, that no condition shall impose restrictions greater than those expressly regulated within the zoning ordinance or by-law and no conditions shall be imposed regarding matters over which jurisdiction exclusively lies in another body pursuant to any general or special law; and provided further, that any off-site conditions shall only address direct adverse impacts related to performance standards expressly governed by the zoning ordinance or by-law and which conditions are proportionate in both nature and extent to the impacts of the project on adjacent properties or adjacent roadways.

(f) A site plan application may be denied only on the grounds that: (i) the proposed site plan does not meet the specific requirements set forth in the zoning ordinance or by-law; or (ii) the petitioner failed to submit the information and fees required by the zoning ordinance or by-law necessary for an adequate and timely review of the design of the proposed land or structures.

(g)(1) The designated authority shall cause to be made a detailed record of its proceedings pursuant to subsection (d), indicating the vote of each member upon each question, or if absent or failing to vote, indicating such fact and setting forth clearly the reason for its

764 decision and of its official actions, copies of all of which shall be filed within 14 days in the
765 office of the city or town clerk and shall be deemed a public record. Notice of the decision shall
766 be mailed forthwith to the petitioner and, if such site plan review required a public hearing
767 pursuant to the zoning ordinance or by-law, to the parties in interest designated in section 11.

768 (2) Each notice shall specify that appeals, if any, shall be made pursuant to section 17 and
769 shall be filed within 20 days after the date of filing of such notice in the office of the city or town
770 clerk. Failure by the designated authority to take final action within said 90 days or extended
771 time, if applicable, shall be deemed to be an approval of the site plan. The petitioner who seeks
772 such approval by reason of the failure of the designated authority to act within such time
773 prescribed shall notify the city or town clerk, in writing, within 14 days from the expiration of
774 said 90 days or extended time, if applicable, of such approval.

775 (3) If the site plan review requires a public hearing, the petitioner shall send such notice
776 to parties in interest designated in section 11 by mail and each notice shall specify that appeals, if
777 any, shall be made pursuant to section 17 and shall be filed within 20 days after the date the city
778 or town clerk received such written notice from the petitioner that the designated authority failed
779 to act within the time prescribed. After the expiration of 20 days without notice of appeal
780 pursuant to section 17, or, if appeal has been taken, after receipt of certified records of the court
781 in which such appeal is adjudicated, indicating that such approval has become final, the city or
782 town clerk shall issue a certificate stating the date of approval, the fact that the designated
783 authority failed to take final action and that the approval resulting from such failure has become
784 final, and such certificate shall be forwarded to the petitioner.

(h) A site plan approval granted under this section shall lapse within a specified period of time, not less than 3 years from the date of the filing of such approval with the city or town clerk, if substantial use or construction has not yet begun, except as extended for good cause by the designated authority. The specified period shall not include time required to pursue or await the determination of an appeal under section 17 or to pursue or await the appeal of any other permit, license, determination or approval that are prerequisites to issuance of a building permit. The minimum period of 3 years may, by ordinance or by-law, be increased.

SECTION 49. Section 14 of said chapter 40A, as appearing in the 2024 Official Edition, is hereby amended by inserting after clause (4) the following clause:-

(5) To hear and decide applications for commercial conversion upon which the board is empowered to act pursuant to subsection (b) of section 3C.

SECTION 50. Section 15 of said chapter 40A, as so appearing, is hereby amended by striking out, in lines 36 and 37, the words “The board of appeals shall hold a hearing on any appeal, application or petition within sixty-five” and inserting in place thereof the following words:- Except as provided under paragraph (3) of subsection (b) of section 3C, the board of appeals shall hold a hearing on any appeal, application or petition within 65.

SECTION 51. Said section 15 of said chapter 40A, as so appearing, is hereby further amended by inserting, after the word “to”, in line 51, the following words:- permits for commercial conversion, as provided for in paragraph (3) of subsection (b) of section 3C, and.

SECTION 52. The fourth paragraph of section 4 of chapter 40G of the General Laws, as so appearing, is hereby amended by striking out clause (8) and inserting in place thereof the following clause:-

807 (8) the enterprise shall report adequate financial data to the MTDC and provide MTDC
808 with sufficient control over the management of the enterprise, so as to protect the investment of
809 the MTDC, including, in the discretion of the board, right of access to financial and other records
810 of the enterprise.

811 SECTION 53. Said section 4 of said chapter 40G, as so appearing, is hereby further
812 amended by striking out, in line 68, the figure “\$1,000,000” and inserting in place thereof the
813 following figure:- \$2,000,000.

814 SECTION 54. Said section 4 of said chapter 40G, as so appearing, is hereby further
815 amended by striking out, in line 69, the figure “\$2,000,000” and inserting in place thereof the
816 following figure:- \$4,000,000.

817 SECTION 55. Said section 4 of said chapter 40G, as so appearing, is hereby further
818 amended by striking out, in lines 82 to 94, paragraph (2).

819 SECTION 56. Section 6 of said chapter 40G, as so appearing, is hereby amended by
820 striking out, in line 2, the word “ninety” and inserting in place thereof the following figure:- 120.

821 SECTION 57. Said section 6 of said chapter 40G, as so appearing, is hereby further
822 amended by striking out, in lines 5 to 7, inclusive, the words “and the number of persons hired as
823 a result of the activities of the corporation who were recipients of programs provided for in
824 chapter 115, 117A, or 118”.

825 SECTION 58. Chapter 40J of the General Laws is hereby amended by striking out
826 section 3 and inserting in place thereof the following section:-

827 Section 3. (a) There is hereby created a body, politic and corporate, to be known as the
828 Massachusetts Technology Park Corporation, hereinafter referred to as the corporation. The
829 corporation is hereby constituted a public instrumentality of the commonwealth and the exercise
830 by the corporation of the powers conferred in this chapter shall be deemed and held to be an
831 essential governmental function. The corporation is hereby placed in the executive office of
832 economic development but shall not be subject to the supervision or control of the department or
833 of any board, bureau, department or other agency of the commonwealth except as specifically
834 provided in this chapter.

835 (b)(1) The corporation shall be governed and its corporate powers exercised by a board of
836 directors, which shall consist of: the secretary of economic development or a designee; the
837 secretary of administration and finance or a designee; the commissioner of higher education or a
838 designee; and 15 persons to be appointed by the governor, 2 of whom shall be appointed from a
839 list of persons nominated by the president of the senate, 2 of whom shall be appointed from a list
840 of persons nominated by the speaker of the house of representatives, 2 of whom shall be chief
841 executive officers of post-secondary educational institutions or distinguished members of the
842 engineering or scientific faculties of those institutions, or members of other appropriate faculties,
843 and of those 2, at least 1 shall represent a public post-secondary educational institution, and 6 of
844 whom shall represent businesses concerned with any technology which may be subject to this
845 chapter and 2 of whom shall be recommended by the Massachusetts AFL-CIO.

846 (2) Each director appointed from the list of nominations recommended by the president
847 of the senate and the speaker of the house of representatives shall serve a term of 2 years to be
848 coterminous with the legislative session of the general court. Each director appointed by the
849 governor shall serve for a term of 5 years and thereafter until the director's successor is

appointed. A person appointed to fill a vacancy on the board shall be appointed in a like manner and shall serve for the unexpired term of the predecessor director.

(3) A director shall be eligible for reappointment. A director may be removed by the governor for cause. Nine directors shall constitute a quorum and the affirmative vote of a majority of the directors present and eligible to vote at a meeting shall be necessary for any action to be taken by the board. The directors shall serve without compensation, but each director shall be entitled to reimbursement for actual and necessary expenses incurred in the performance of official duties.

(4) The board shall meet not less than 4 times each year and shall have final authority over the activities of the corporation.

(5) The secretary of economic development or a designee shall serve as chairperson. The board shall biennially elect from among its members a vice-chairperson and may designate a treasurer and a secretary, who need not be members of the board. The secretary shall keep a record of the proceedings of the corporation and shall be the custodian of all books, documents and papers filed with the corporation and its official seal. The secretary shall cause copies to be made of all minutes and other records and documents of the corporation and shall certify that such copies are true copies and all persons dealing with the corporation may rely upon such certification. The treasurer shall be the chief financial and accounting officer of the corporation and shall be in charge of its funds, books of account and accounting records.

(d) The executive committee of the board shall consist of the chairperson, the vice-chairperson and not less than 3 individuals elected biennially by the board from among its members, 1 of whom shall be a board member representing a post-secondary educational

872 institution and 1 of whom shall be a board member from a business. The executive committee
873 shall have all the powers of the board between meetings of the board, to be exercised in
874 accordance with by-laws established by the board. The executive committee shall meet as often
875 as considered necessary by the committee.

876 (e) Any action required or permitted to be taken at a meeting of the directors may be
877 taken without a meeting if all of the directors consent in writing to such action and such written
878 consent is filed with the records of the minutes of the meetings of the board. Such consent shall
879 be treated for all purposes as a vote at a meeting.

880 (f) Chapter 268A shall apply to all directors, officers and employees of the corporation
881 except that the corporation may purchase from, sell to, borrow from, contract with or otherwise
882 deal with any organization in which any director of the corporation is in any way interested or
883 involved; provided, however, that such interest or involvement shall be disclosed in advance to
884 the directors and recorded in the minutes of the proceedings of the corporation; and provided
885 further, that no director having such an interest or involvement shall participate in any decision
886 relating to such organization.

887 (g) Neither the corporation nor any of its officers, directors, agents, employees,
888 consultants or advisors shall be subject to section 3B of chapter 7, sections 9A, 45, 46 and 52 of
889 chapter 30, chapter 31, or sections 27 to 27E, inclusive, of chapter 149; provided, however, that
890 in purchasing products or services, the corporation shall at all times follow generally accepted
891 good business practices.

892 (h) All officers and employees of the corporation having access to its cash or negotiable
893 securities shall give bond to the corporation at its expense, in such amount and with such surety

894 as the board may prescribe. The persons required to give bond may be included in 1 or more
895 blanket or scheduled bonds.

896 (i) Directors and officers who are not regular, compensated employees of the corporation
897 shall not be liable to the commonwealth, to the corporation or to any other person as a result of
898 their activities, whether ministerial or discretionary, as such directors or officers except for
899 willful dishonesty or intentional violations of law. The board of the corporation may purchase
900 liability insurance for directors, officers and employees and may indemnify said persons against
901 the claims of others.

902 SECTION 59. Section 56 of chapter 41 of the General Laws, as appearing in the 2024
903 Official Edition, is hereby amended by striking out the last sentence and inserting in place
904 thereof the following sentence:- This section shall not prohibit payment to be made for: (i)
905 school travel prior to the date of travel; (ii) the payment of software licenses, software
906 maintenance agreements or online subscription services for school curriculum prior to the fiscal
907 year in which services shall be rendered; or (iii) the payment of estimates issued by utilities for
908 make-ready work to facilitate access to utility poles, conduits, ducts or rights-of-way related to
909 broadband infrastructure projects.

910 SECTION 60. Section 5 of chapter 44B of the General Laws, as so appearing, is hereby
911 amended by inserting after the word “sites”, in line 49, the following words:- and may
912 recommend a preference for projects developed under zoning adopted pursuant to section 3C of
913 chapter 40A.

914 SECTION 61. Said section 5 of said chapter 44B is hereby further amended by striking
915 out the words “and may recommend a preference for projects developed under zoning adopted
916 pursuant to section 3C of chapter 40A”, inserted by section 60.

917 SECTION 62. Chapter 59 of the General Laws is hereby amended by inserting after
918 section 5O the following 2 sections:-

919 Section 5P. (a) As used in this section, the following words shall, unless the context
920 clearly requires otherwise, have the following meanings:

921 “Adaptive reuse”, as defined in section 3C of chapter 40A.

922 “Executive office”, the executive office of housing and livable communities.

923 “Zoning”, as defined in section 1A of chapter 40A.

924 (b) A city or town that adopts commercial conversion as of right zoning pursuant to
925 section 3C of chapter 40A may adopt a tax increment exemption for an adaptive reuse project.
926 The exemption amount shall be not less than 10 per cent and not more than 100 per cent of the
927 incremental value attributable to the residential portion of an adaptive reuse project allowed as of
928 right under zoning established pursuant to said section 3C of said chapter 40A for a period of not
929 less than 5 years and not more than 20 years. The legislative body of the city or town shall
930 establish the percentage and term of the exemption, subject to the charter of the city or town and
931 the approval of the executive office.

932 (c) The executive office may promulgate regulations for the administration of this
933 section.

934 Section 5Q. (a) Any city or town that accepts this section may grant an exemption of up
935 to the full amount of the taxable valuation of multifamily housing developed on land owned by a
936 religious sect or denomination pursuant to section 3D of chapter 40A. A city or town that accepts
937 this section shall adopt an ordinance or by-law specifying the method for negotiating and
938 approving exemptions pursuant to this section. This section shall take effect in any city or town
939 only upon its acceptance by such city or town.

940 (b) The executive office of housing and livable communities may promulgate regulations
941 for the administration of this section.

942 SECTION 63. Paragraph (2) of subsection (l) of section 6 of chapter 62 of the General
943 Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 543,
944 the words “12 month period” and inserting in place thereof the following words:- 24-month
945 period.

946 SECTION 64. Subsection (r) of said section 6 of said chapter 62, as so appearing, is
947 hereby amended by striking out paragraph (1) and inserting in place thereof the following
948 paragraph:-

949 (1) A taxpayer, to the extent authorized by the life sciences tax incentive program
950 established in section 5 of chapter 23I, may be allowed a refundable jobs credit against the tax
951 liability imposed under this chapter in an amount and schedule determined by the Massachusetts
952 Life Sciences Center in consultation with the department of revenue. The credit allowed under
953 this section shall be taken only after the taxpayer executes a written agreement pursuant to
954 paragraph (3) of subsection (d) of said section 5 of said chapter 23I.

SECTION 65. Paragraph (2) of said subsection (r) of said section 6 of said chapter 62, as so appearing, is hereby amended by striking out, in line 920, the figure “50” and inserting in place thereof the following figure:- 25.

SECTION 66. Said subsection (r) of said section 6 of said chapter 62, as so appearing, is hereby further amended by adding the following 2 paragraphs:-

(5) If the Massachusetts Life Sciences Center revokes the certification of a life sciences company pursuant to paragraph (2) of subsection (e) of section 5 of chapter 23I, a portion of the tax credit otherwise allowed by this section and claimed by the taxpayer prior to the date on which the Massachusetts Life Sciences Center makes the determination to revoke the life sciences company’s certification shall be added back as additional tax due and shall be reported as such on the return of the taxpayer for the taxable period in which the determination to revoke the certification is made. The amount of credits subject to recapture shall be proportionate to the life science company’s compliance, as determined by the Massachusetts Life Sciences Center as part of its revocation process and reported to the corporation and the department at the time certification is revoked.

(6) Nothing in this subsection shall limit the authority of the commissioner to make an adjustment to a taxpayer’s liability upon audit.

SECTION 67. Subsection (gg) of said section 6 of said chapter 62, as so appearing, is hereby amended by inserting after the word “facility”, in line 1687, the following words:- in the case of an owner, and not more than 50 per cent of the owner and tenant’s combined total capital investment in a climatetech facility in the case of a tenant.

976 SECTION 68. Said subsection (gg) of said section 6 of said chapter 62, as so appearing,
977 is hereby further amended by striking out, in line 1702, the words “has made a” and inserting in
978 place thereof the following words:- and tenant have made a combined.

979 SECTION 69. Subsection (hh) of said section 6 of said chapter 62, as so appearing, is
980 hereby amended by striking out paragraph (1) and inserting in place thereof the following
981 paragraph:-

982 (1) A taxpayer, to the extent authorized by the climatetech tax incentive program
983 established in section 16 of chapter 23J, may be allowed a refundable jobs credit against the tax
984 liability imposed under this chapter in an amount and schedule determined by the Massachusetts
985 clean energy technology center established in section 2 of said chapter 23J, in consultation with
986 the department of revenue. The credit allowed under this section shall be taken only after the
987 taxpayer executes a contract pursuant to paragraph (3) of subsection (d) of section 16 of chapter
988 23J.

989 SECTION 70. Said subsection (hh) of said section 6 of said chapter 62, as so appearing,
990 is hereby further amended by adding the following 2 paragraphs:-

991 (6) If the Massachusetts clean energy technology center revokes the certification of a
992 climatetech company pursuant to paragraph (2) of subsection (c) of section 16 of chapter 23J, a
993 portion of the tax credit otherwise allowed by this section and claimed by the taxpayer prior to
994 the date on which the Massachusetts clean energy technology makes the determination to revoke
995 the climatetech company’s certification shall be added back as additional tax due and shall be
996 reported as such on the return of the taxpayer for the taxable period in which the determination to
997 revoke the certification is made. The amount of credits subject to recapture shall be proportionate

998 to the climatetech company's compliance, as determined by the Massachusetts clean energy
999 technology center as part of its revocation process and reported to the climatetech company and
1000 the department at the time certification is revoked.

1001 (7) Nothing in this subsection shall limit the authority of the commissioner to make an
1002 adjustment to a taxpayer's liability upon audit.

1003 SECTION 71. Section 6J of said chapter 62, as so appearing, is hereby amended by
1004 inserting after the word "criteria", in line 46, the following words:- , and there shall be a
1005 preference for projects that are adaptive reuse allowed as-of-right in commercially zoned districts
1006 pursuant to section 3C of chapter 40A.

1007 SECTION 72. Said section 6J of said chapter 62 is hereby further amended by striking
1008 out the words " , and there shall be a preference for projects that are adaptive reuse allowed as-of-
1009 right in commercially zoned districts pursuant to section 3C of chapter 40A", inserted by section
1010 71.

1011 SECTION 73. Subsection (b) of section 21 of chapter 62C of the General Laws, as
1012 appearing in the 2024 Official Edition, is hereby amended by adding the following 3
1013 paragraphs:-

1014 (32) the disclosure to the Massachusetts Life Sciences Center established in section 3 of
1015 chapter 23I of return and wage reporting information of a life sciences company certified
1016 pursuant to subsection (b) of section 5 of said chapter 23I, that is: (i) received by the
1017 commissioner pursuant to this chapter or chapter 62E; and (ii) necessary for the administration of
1018 the life sciences tax incentive program authorized by subsection (d) of said section 5 of said
1019 chapter 23I.

1020 (33) the disclosure to the Massachusetts clean energy technology center established in
1021 section 2 of chapter 23J of return and wage reporting information of a climatetech company
1022 certified pursuant to subsection (b) of section 16 of said chapter 23J, that is: (i) received by the
1023 commissioner pursuant to this chapter or chapter 62E; and (ii) necessary for the administration of
1024 the climatetech tax incentive program authorized by paragraph (1) of subsection (d) of said
1025 section 16 of said chapter 23J.

1026 (34) the disclosure to the Massachusetts clean energy technology center established in
1027 section 2 of chapter 23J of return and wage reporting information of an offshore wind company
1028 certified pursuant to subsection (b) of section 8A of said chapter 23J, that is: (i) received by the
1029 commissioner pursuant to this chapter or chapter 62E; and (ii) necessary for the administration of
1030 the offshore wind tax incentive program authorized by subsection (d) of said section 8A of said
1031 chapter 23J.

1032 SECTION 74. Section 38R of chapter 63 of the General Laws, as so appearing, is hereby
1033 amended by inserting after the word “criteria”, in line 45, the following words:- , and there shall
1034 be a preference for projects that are adaptive reuse allowed as-of-right in commercially zoned
1035 districts pursuant to section 3C of chapter 40A.

1036 SECTION 75. Said section 38R of said chapter 63 is hereby further amended by striking
1037 out the words “, and there shall be a preference for projects that are adaptive reuse allowed as-of-
1038 right in commercially zoned districts pursuant to section 3C of chapter 40A”, inserted by section
1039 74.

1040 SECTION 76. Section 38U of said chapter 63, as appearing in the 2024 Official Edition,
1041 is hereby amended by striking out, in lines 51 and 52, the words “neither credit allowed by

1042 section 31A nor section 31H is taken” and inserting in place thereof the following words:- the
1043 credit allowed by section 31H is not taken.

1044 SECTION 77. Section 38X of said chapter 63, as so appearing, is hereby amended by
1045 striking out, in line 49, the words “12 month period” and inserting in place thereof the words:-
1046 24-month period.

1047 SECTION 78. Section 38CC of said chapter 63, as so appearing, is hereby amended by
1048 striking out subsection (a) and inserting in place thereof the following subsection:-

1049 (a) A taxpayer, to the extent authorized by the life sciences tax incentive program
1050 established in section 5 of chapter 23I, may be allowed a refundable jobs credit against the tax
1051 liability imposed under this chapter in an amount and schedule determined by the Massachusetts
1052 Life Sciences Center in consultation with the department. The credit allowed under this section
1053 shall be taken only after the taxpayer executes a contract pursuant to paragraph (3) of subsection
1054 (d) of section 5 of chapter 23I.

1055 SECTION 79. Subsection (b) of said section 38CC of said chapter 63, as so appearing, is
1056 hereby amended by striking out, in line 7, the figure “50” and inserting in place thereof the
1057 following figure:- 25.

1058 SECTION 80. Subsection (c) of said section 38CC of said chapter 63, as so appearing, is
1059 hereby amended by adding the following sentence:- If the taxpayer is subject to a minimum
1060 excise under this chapter, the amount of the credit allowed by this section shall not reduce the
1061 excise to an amount less than the minimum excise.

1062 SECTION 81. Subsection (d) of said section 38CC of said chapter 63, as so appearing, is
1063 hereby amended by striking out, in line 20, the figure “30,000,000” and inserting in place thereof
1064 the following figure:- 40,000,000.

1065 SECTION 82. Said section 38CC of said chapter 63, as so appearing, is hereby further
1066 amended by adding the following 2 subsections:-

1067 (e) If the Massachusetts Life Sciences Center revokes the certification of a life sciences
1068 company pursuant to paragraph (2) of subsection (e) of section 5 of chapter 23I, a portion of the
1069 tax credit otherwise allowed by this section and claimed by the company prior to the date on
1070 which the Massachusetts Life Sciences Center makes the determination to revoke its certification
1071 shall be added back as additional tax due and shall be reported as such on the return of the
1072 taxpayer for the taxable period in which the determination to revoke the certification is made.
1073 The amount of credits subject to recapture shall be proportionate to the company’s compliance,
1074 as determined by the Massachusetts Life Sciences Center as part of its revocation process and
1075 reported to the corporation and the department at the time certification is revoked.

1076 (f) Nothing in this section shall limit the authority of the commissioner of revenue to
1077 make an adjustment to a corporation’s liability upon audit.

1078 SECTION 83. Section 38RR of said chapter 63, as so appearing, is hereby amended by
1079 inserting after the word “facility”, in line 29, the following words:- in the case of an owner, and
1080 not more than 50 per cent of the owner and tenant’s combined total capital investment in a
1081 climatetech facility in the case of a tenant.

1082 SECTION 84. Said section 38RR of said chapter 63, as so appearing, is hereby further
1083 amended by striking out, in lines 44 and 45, the words “owner’s total capital investment in the

1084 facility equals” and inserting in place thereof the following words:- owner and tenant have made
1085 a combined total capital investment in the facility that is.

1086 SECTION 85. Section 38TT of said chapter 63, as so appearing, is hereby amended by
1087 striking out subsection (a) and inserting in place thereof the following subsection:-

1088 (a) A taxpayer, to the extent authorized by the climatetech tax incentive program
1089 established in subsection (d) of section 16 of chapter 23J, may be allowed a refundable jobs
1090 credit against the tax liability imposed under this chapter in an amount and schedule determined
1091 by the Massachusetts clean energy technology center established in section 2 of said chapter 23J,
1092 in consultation with the department of revenue. The credit allowed under this section shall be
1093 taken only after the taxpayer executes a written agreement pursuant to paragraph (3) of
1094 subsection (d) of said section 16 of said chapter 23J.

1095 SECTION 86. Said section 38TT of said chapter 63, as so appearing, is hereby further
1096 amended by adding the following 2 subsections:-

1097 (e) If the Massachusetts clean energy technology center revokes the certification of a
1098 climatetech company pursuant to paragraph (2) of subsection (c) of section 16 of chapter 23J, a
1099 portion of the tax credit otherwise allowed by this section and claimed by the taxpayer prior to
1100 the date on which the Massachusetts clean energy technology makes the determination to revoke
1101 the climatetech company’s certification shall be added back as additional tax due and shall be
1102 reported as such on the return of the taxpayer for the taxable period in which the determination to
1103 revoke the certification is made. The amount of credits subject to recapture shall be proportionate
1104 to the climatetech company’s compliance, as determined by the Massachusetts clean energy

1105 technology center as part of its revocation process and reported to the climatetech company and
1106 the department at the time certification is revoked.

1107 (f) Nothing in this section shall limit the authority of the commissioner of revenue to
1108 make an adjustment to a corporation's liability upon audit.

1109 SECTION 87. Section 6 of chapter 64H of the General Laws is hereby amended by
1110 striking out, in line 526, as so appearing, the figure “5” and inserting in place thereof the
1111 following figure:- 10.

1112 SECTION 88. Said section 6 of said chapter 64H is hereby further amended by striking
1113 out, in lines 527 and 528, as so appearing, the figure “1,000,000” and inserting in place thereof,
1114 in each instance, the following figure:- 2,000,000.

1115 SECTION 89. Subsection (ww) of said section 6 of said chapter 64H, as so appearing, is
1116 hereby amended by striking out the words “12 month period” and inserting in place thereof, in
1117 each instance, the following words:- 24-month period.

1118 SECTION 90. Section 2 of chapter 70B of the General Laws, as so appearing, is hereby
1119 amended by striking out, in lines 46 and 47, the words “and which meet the purposes of
1120 subsection (c) of section 9 of chapter 23J”.

1121 SECTION 91. Section 1 of the chapter 90 of the General Laws, as so appearing, is hereby
1122 amended by inserting after the definition of “Class 2 electric bicycle” the following definition:-

1123 “Class 3 electric bicycle”, an electric bicycle or tricycle equipped with a motor that
1124 provides assistance only when the rider is pedaling and that ceases to provide assistance when
1125 the bicycle reaches or exceeds the speed of 28 miles per hour.

1126 SECTION 92. Said section 1 of said chapter 90, as so appearing, is hereby further
1127 amended by striking out, in line 104, the words “or a class 2 electric bicycle” and inserting in
1128 place thereof the following words:- , a class 2 electric bicycle or a class 3 electric bicycle;
1129 provided, that “electric bicycle” shall not include a motorized bicycle.

1130 SECTION 93. Said section 1 of said chapter 90, as so appearing, is hereby further
1131 amended by inserting after the definition of “Massachusetts license” the following definition:-

1132 “Micromobility device”, a small, lightweight transportation device intended for personal
1133 use as an alternative to motor vehicles for travel in public access areas including ways and
1134 bikeways, and as may be further defined by regulations promulgated by the registrar; provided,
1135 that a “micromobility device” shall not include a motor vehicle, motorcycle, motorized bicycle
1136 or moped, low speed vehicle, limited use motorcycle or low speed motorcycle.

1137 SECTION 94. Said section 1 of said chapter 90, as so appearing, is hereby further
1138 amended by inserting after the definition of “Mobile telephone” the following definition:-

1139 “Mobility aid device”, a device used by a pedestrian with a mobility disability to assist
1140 with indoor and outdoor locomotion, including an electric personal assistive mobility device
1141 used by a vulnerable user, a group wheelchair, a mobility cart and other such devices.

1142 SECTION 95. Said section 1 of said chapter 90, as so appearing, is hereby further
1143 amended by striking out the definition of “Motorized bicycle” and inserting in place thereof the
1144 following definition:-

1145 “Motorized bicycle” or “moped”, a pedal bicycle which has a helper motor, or a non-
1146 pedal bicycle which has a motor, with either a cylinder capacity not exceeding 50 cubic

centimeters or the hybrid or electric powered equivalent, an automatic transmission, and which is capable of a maximum speed of not more than 30 miles per hour; provided, that “motorized bicycle” shall not include an electric bicycle.

SECTION 96. Said section 1 of said chapter 90, as so appearing, is hereby further amended by striking out the definition of “Motorized scooter”.

SECTION 97. Said section 1 of said chapter 90, as so appearing, is hereby further amended by inserting after the definition of “Motor vehicles” the following definition:-

“Nationally recognized testing laboratory”, as defined in 29 C.F.R 1910.7.

SECTION 98. Said section 1 of said chapter 90, as so appearing, is hereby further amended by inserting after the definition of “Police officer” the following definition:-

“Powered micromobility device”, a micromobility device that has an onboard motor capable of delivering tractive power to the device either as power-assist to human powered propulsion or as sole propulsion or throttle. “Powered micromobility device” shall include electric scooters, skateboards, hoverboards and unicycles with onboard motors. “Powered micromobility device” shall not include mobility aid devices.

SECTION 99. Said section 1 of said chapter 90, as so appearing, is hereby further amended by inserting after the definition of “School pupil” the following definition:-

“Scooter”, a powered or unpowered device without pedals where the rider can sit or stand on a footboard for typical operation.

SECTION 100. Said section 1 of said chapter 90, as so appearing, is hereby further amended by inserting after the definition of “Semi-trailer unit” the following definition:-

1168 “Solely human powered micromobility device” or “unpowered micromobility device”, a
1169 micromobility device propelled exclusively by human muscular effort that has no onboard motor
1170 capable of delivering tractive power to the device; provided that “solely human powered
1171 micromobility device” shall include, but shall not be limited to, non-electric bicycles, unpowered
1172 scooters, skateboards, longboards, unicycles, roller skates, inline skates and other such
1173 unpowered micromobility devices. “Solely human powered micromobility device” or
1174 “unpowered micromobility device” shall not include mobility aid devices.

1175 SECTION 101. The first paragraph of section 1B of said chapter 90, as so appearing, is
1176 hereby amended by striking out the first sentence and inserting in place thereof the following 2
1177 sentences:- A motorized bicycle shall not be operated upon any way within the commonwealth
1178 without obtaining an annual registration and sticker or plate bearing a distinctive number, by an
1179 application as prescribed by the registrar. A motorized bicycle shall not be operated upon any
1180 way within the commonwealth by any person under 16 years of age, nor at a speed in excess of
1181 25 miles per hour.

1182 SECTION 102. Said first paragraph of said section 1B of said chapter 90, as so
1183 appearing, is hereby further amended by striking out the last sentence and inserting in place
1184 thereof the following sentence:- Motorized bicycles shall be excluded from operating on bike
1185 lanes and off-street recreational bicycle paths.

1186 SECTION 103. Said section 1B of said chapter 90, as so appearing, is hereby further
1187 amended by adding the following paragraph:-

1188 No motorized bicycle shall be registered under this section unless the application is
1189 accompanied by a certificate as defined in section 34A or unless the registrar is otherwise
1190 satisfied that the applicant and motorized bicycle have compulsory liability insurance.

1191 SECTION 104. Section 1C of said chapter 90, as so appearing, is hereby amended by
1192 striking out, in line 1, the words “and motorized scooters”.

1193 SECTION 105. Section 1E of said chapter 90 is hereby repealed.

1194 SECTION 106. Said chapter 90 is hereby further amended by inserting after section 2 the
1195 following section:-

1196 Section 2½. (a) The registrar of motor vehicles may issue number or registration plates
1197 for motor vehicles or micromobility devices not otherwise defined in section 1; provided, that a
1198 motor vehicle or micromobility device shall not be eligible to be registered pursuant to chapter
1199 90B.

1200 (b) The registrar, in consultation with the division of insurance, may promulgate
1201 regulations, including, but not limited to: (i) definitions for each type of motor vehicle or
1202 micromobility devices not otherwise defined in section 1; (ii) requirements for registration and
1203 operation; (iii) any restrictions for registration and operation; (iv) equipment; (v) inspections; and
1204 (vi) insurance for the motor vehicles and micromobility devices.

1205 SECTION 107. Section 8B of said chapter 90, as appearing in the 2024 Official Edition,
1206 is hereby amended by striking out, in line 20, the words “or motorized scooter”.

1207 SECTION 108. Said chapter 90 is hereby further amended by adding the following
1208 section:-

1209 Section 64. (a) For purposes of this section, the following words shall, unless the context
1210 clearly requires otherwise, have the following meanings:

1211 “Shared use path”, a path intended for transportation or recreational use that is designed
1212 for people of all ages and abilities on foot or using motorized or non-motorized micromobility
1213 devices and is physically separated from motorized vehicle traffic within a highway right-of-way
1214 or an independent right-of-way with few crossflows with motor vehicles.

1215 “Speed tier 0”, all unpowered micromobility devices and powered micromobility devices
1216 with a maximum manufacturer assisted or designed speed, whichever is higher, of 20 miles per
1217 hour, including, but not limited to, unpowered micromobility devices, class 1 and class 2 electric
1218 bicycles and mobility aid devices.

1219 “Speed tier 1”, powered micromobility devices with a maximum manufacturer assisted or
1220 designed speed, whichever is higher, between 21 miles per hour and 30 miles per hour,
1221 including, but not limited to, class 3 electric bicycles.

1222 “Speed tier 2”, powered micromobility devices with a maximum manufacturer assisted or
1223 designed speed, whichever is higher, between 31 miles per hour and 40 miles per hour,
1224 including, but not limited to, low speed vehicles, limited use motorcycles or low speed
1225 motorcycles.

1226 “Speed tier 3”, powered micromobility devices with a maximum manufacturer assisted or
1227 designed speed, whichever is higher, greater than 40 miles per hour.

1228 (b) Except as otherwise provided by state or federal law or regulations of the registrar,
1229 powered micromobility devices sold, leased, rented or operated in the commonwealth shall have
1230 a minimum battery rating of UL 2271 or equivalent standard.

1231 (c) Except as otherwise provided by state or federal law or regulations of the registrar,
1232 powered micromobility devices sold, leased, rented or operated in the commonwealth, except
1233 electric bicycles, shall have a minimum electrical system level rating of UL 2272 or equivalent
1234 standard. Electric bicycles sold, leased, rented or operated in the commonwealth shall have a
1235 minimum electrical system level rating of UL 2849 or equivalent standard.

1236 (d) Except as otherwise provided by state or federal law or regulations of the registrar,
1237 motorized bicycles or mopeds powered by a lithium-ion battery sold, leased, rented or operated
1238 in the commonwealth shall meet or exceed an electrical system safety standard of UL 2850, as
1239 certified by a nationally recognized testing laboratory.

1240 (e)(1)(A) Except as otherwise required by state or federal law or regulations of the
1241 registrar, speed tier 0 and speed tier 1 micromobility devices sold, leased, rented or operated in
1242 the commonwealth shall be equipped with lights, brakes and an audible warning that satisfy the
1243 requirements of section 11B of chapter 85 and federal requirements for bicycle reflectors and
1244 brakes established in 16 C.F.R. 1512.

1245 (B) Except as otherwise required by state or federal law or regulations of the registrar,
1246 speed tier 2 and speed tier 3 micromobility devices sold, leased, rented or operated in the
1247 commonwealth shall be equipped with lights, brakes and a horn that satisfy the requirements for
1248 motor vehicles established in 49 C.F.R. 571.

1249 (2)(A) Except as otherwise provided by state or federal law or regulations of the registrar,
1250 any person 16 years of age or younger operating a speed tier 0 micromobility device, except for a
1251 mobility aid device, or being carried as a passenger on such micromobility device on a public
1252 way, bicycle path or on any other public right-of-way shall wear a helmet. Said helmet shall fit
1253 the person's head, shall be secured to the person's head by straps while the micromobility device
1254 is being operated and shall meet the standards for helmets established by the United States
1255 Consumer Product Safety Commission pursuant to 16 C.F.R. 1203. This subparagraph shall not
1256 apply to a passenger if the passenger is in an enclosed trailer or other device which adequately
1257 holds the passenger in place and protects the passenger's head from impact in a crash.

1258 (B) Except as otherwise provided by state or federal law or regulations of the registrar, a
1259 person operating a speed tier 1, 2 or 3 micromobility device or riding as a passenger on a
1260 micromobility device shall wear protective headgear conforming with such minimum standards
1261 of construction and performance as the registrar may prescribe, and no person operating such a
1262 micromobility device shall permit any other person to ride as a passenger on such micromobility
1263 device unless such passenger is wearing such protective headgear.

1264 (3) Except as otherwise required by state or federal law or regulations of the registrar, it
1265 shall be unlawful for any person younger than 16 years of age to purchase, rent, lease or operate
1266 any micromobility device designated as a speed tier 1, speed tier 2 or speed tier 3 micromobility
1267 device; provided, however, that this restriction shall not apply to mobility aid devices.

1268 (4) Except as otherwise required by state or federal law or regulations of the registrar, it
1269 shall be unlawful for any person younger than 16 years of age to purchase, rent, lease or operate
1270 any powered micromobility device, motorized bicycle or moped designated as a speed tier 0,

1271 speed tier 1, speed tier 2 or speed tier 3 micromobility device; provided, however, that this
1272 restriction shall not apply to solely human powered micromobility devices, unpowered
1273 micromobility devices or mobility aid devices.

1274 (5) It shall be unlawful to operate a micromobility device with more passengers than the
1275 device was designed to accommodate by the manufacturer, except as may be allowed by
1276 regulation.

1277 (6)(A) Except as otherwise provided by state or federal law or regulations of the registrar,
1278 speed tier 0 micromobility devices and the operator of a speed tier 0 micromobility device shall
1279 be afforded all of the rights and privileges and shall be subject to all of the duties of the operator
1280 of a bicycle or duties related to a bicycle set forth in sections 11B and 11B½ of chapter 85 or any
1281 other general or special law, regulation or local ordinance.

1282 (B) Except as otherwise provided by state or federal law or regulations of the registrar,
1283 speed tier 1 micromobility devices and the operator of such speed tier 1 micromobility device
1284 shall be afforded all of the rights and privileges and shall be subject to all of the duties of the
1285 operator of an electric bicycle or duties related to an electric bicycle set forth in section 11B¾ of
1286 chapter 85 or any other general or special law, regulation or local ordinance.

1287 (C) Except as otherwise provided by state or federal law or regulations of the registrar, it
1288 shall be unlawful for any speed tier 2 or speed tier 3 micromobility devices to travel on
1289 sidewalks, bike lanes, bike paths, bike routes, separated micromobility lanes or shared use paths.

1290 (f) It shall be unlawful to make any aftermarket modifications to a micromobility device,
1291 including aftermarket modifications made to the device's battery, to increase either the

1292 manufacturer-designed: (i) speed, range or propulsion power of a micromobility device; or (ii)
1293 passenger capacity of a micromobility device, except as may be allowed by regulation.

1294 (g) No micromobility device shall be sold, rented, leased or operated in the
1295 commonwealth if it does not satisfy the requirements of this section for the device's respective
1296 speed tier based on the device's maximum manufacturer assisted or designed speed, whichever is
1297 higher.

1298 (h) Micromobility devices shall be subject to any speed limits and speed restrictions for
1299 motor vehicles established by: (i) municipalities or the division of highways of the
1300 Massachusetts Department of Transportation pursuant to sections 17 and 18; (ii) regulations of
1301 the department under chapter 90E; or (iii) rules or regulations of the department of conservation.
1302 Violation of such speed limits and speed restrictions shall be subject to all civil and criminal
1303 fines applicable to the operation of a motor vehicle in violation of such speed limits and
1304 restrictions. Micromobility devices shall be subject to all civil and criminal fines and penalties
1305 applicable to the operation of a motor vehicle under sections 24 to 24R, inclusive, 24V and 25;
1306 provided, that administrative penalties shall not apply, unless provided by regulations of the
1307 registrar.

1308 (i) The registrar, in consultation with the division of insurance, may promulgate
1309 regulations establishing registration, licensure, insurance, fines and other requirements for
1310 micromobility devices necessary to promote public and roadway safety.

1311 SECTION 109. Chapter 90E of the General Laws is hereby amended by striking out
1312 section 1 and inserting in place thereof the following section:-

1313 Section 1. For the purposes of this chapter, the following words or terms shall, unless the
1314 context otherwise requires, have the following meanings:

1315 “Bicycle”, a 2-wheel nonmotor-powered vehicle.

1316 “Bicycle parking facility”, any facility for the temporary storage of bicycles or
1317 micromobility devices which allows the frame and the wheels of the bicycle or micromobility
1318 device to be locked so as to minimize the risk of theft and vandalism.

1319 “Bike lane”, a lane on a street restricted to bicycles and speed tier 0 or speed tier 1
1320 micromobility devices as defined in section 64 of chapter 90 and so designated by means of
1321 painted lines, pavement coloring or other appropriate markings; provided, however, that
1322 motorized bicycles shall not be permitted to use bike lanes.

1323 “Bike path”, a route for the exclusive use of bicycles and speed tier 0 or speed tier 1
1324 micromobility devices, separated by grade or other physical barrier from motor traffic; provided,
1325 however, that motorized bicycles shall not be permitted to use bike paths.

1326 “Bike route”, a roadway shared by bicycles, micromobility devices and other forms of
1327 transportation designated by the means of signs or pavement markings.

1328 “Bikeway”, bike paths, bike lanes and bike routes.

1329 “Commissioner”, the administrator for highways.

1330 “Department”, the division of highways.

1331 SECTION 110. Chapter 111 of the General Laws is hereby amended by adding the
1332 following section:-

1333 Section 250. The commissioner of public health shall promulgate regulations for the
1334 annual health inspection of food trucks. The commissioner shall prescribe rules and regulations
1335 relative to inspection schedules, documentation of inspections, standards for acceptable
1336 cleanliness and the costs of such inspections.

1337 SECTION 111. Section 75 of chapter 112 of the General Laws, as appearing in the 2024
1338 Official Edition, is hereby amended by adding the following paragraph:-

1339 Notwithstanding any general or special law to the contrary, the board, upon the
1340 recommendation of the executive director of the board or their designee, shall waive any
1341 requirement to complete an exam exclusively verifying proficiency in English if the applicant: (i)
1342 previously passed an English proficiency examination at any time; (ii) has obtained 1 or more
1343 nursing degrees in the United States, if the applicant was originally trained outside of the United
1344 States; or (iii) demonstrates English proficiency through another method deemed acceptable by
1345 the board. Nothing in this paragraph shall be construed to impede the board's authority to: (A)
1346 establish or conduct examinations that test the applicant's fitness to practice; or (B) promulgate
1347 rules, regulations or guidelines pursuant to section 79. The board shall not waive requirements
1348 for an exam verifying proficiency in English for applicants seeking licensure through the nurse
1349 licensure compact pursuant to chapter 112A.

1350 SECTION 112. Section 87A1/2 of said chapter 112, as so appearing, is hereby amended
1351 by striking out subsection (e) and inserting in place thereof the following subsection:-

1352 (e)(1) The educational and experience requirements for a certificate shall be at least 1 of
1353 the following:

1354 (i) a bachelor's degree or its equivalent from a college or university approved by the
1355 board and 2 years of full-time experience or the equivalent approved by the board;

1356 (ii) a bachelor's degree with 30 semester hours of additional education from a college or
1357 university approved by the board and 1 year of full-time experience or the equivalent approved
1358 by the board; or

1359 (iii) a master's degree or its equivalent from a college or university approved by the
1360 board and 1 year of full-time experience or the equivalent approved by the board.

1361 (2) The board shall promulgate regulations establishing educational requirements to take
1362 the required examination as a condition for the granting of a certificate.

1363 SECTION 113. Paragraph (1) of subsection (d) of section 87B of said chapter 112, as so
1364 appearing, is hereby amended by inserting after the word "commonwealth;," in line 33, the
1365 following word:- and.

1366 SECTION 114. Paragraph (2) of said subsection (d) of said section 87B of said chapter
1367 112, as so appearing, is hereby amended by striking out clauses (A) to (C), inclusive, and
1368 inserting in place thereof the following 3 clauses:-

1369 (A) is certified or licensed in another state and is in good standing in the other state;

1370 (B) has passed the Uniform Certified Public Accountant Examination and has completed
1371 the educational requirements listed in subsection (e) of section 87A1/2; or

1372 (C) had 4 years of experience in the practice of public accountancy or equivalent,
1373 meeting requirements prescribed by the board by rule, after passing the examination upon which
1374 their certificate was based within the 10 years immediately preceding their application.

1375 SECTION 115. Said subsection (d) of said section 87B of said chapter 112, as so
1376 appearing, is hereby further amended by striking out paragraph (3).

1377 SECTION 116. Subsection (h) of said section 87B of said chapter 112, as so appearing, is
1378 hereby amended by striking out paragraph (2) and inserting in place thereof the following
1379 paragraph:-

1380 (1) A person whose principal place of business is outside the commonwealth shall be
1381 deemed to have qualifications substantially equivalent to the commonwealth's requirements for
1382 the practice of public accountancy and may engage in the practice of certified public
1383 accountancy in the commonwealth, including, but not limited to, offering and rendering
1384 professional services, whether in person or by mail, telephone or electronic means, if such person
1385 holds a valid license as a certified public accountant issued by another state; provided, however,
1386 that the person shall have met the educational and experience requirements listed in subsection
1387 (e) of section 87A1/2 and shall have passed the Uniform Certified Public Accountant
1388 Examination or exceeded the licensure requirements of this chapter; provided further, that any
1389 person who has passed the Uniform Certified Public Accountant Examination and holds a valid
1390 certified public accountant certificate issued by another state on or before December 31, 2026,
1391 shall be exempt from the educational requirements in subsection (e) of section 87A1/2. Any
1392 person who qualifies for the practice privilege pursuant to this subsection may exercise such
1393 privilege in the commonwealth without limitation on the period of time within which such
1394 person may so practice in the commonwealth if such person remains qualified pursuant to this
1395 subsection; provided, however, that such person shall not be required to obtain a certificate or
1396 license pursuant to this section, except as provided in this subsection, submit any other notice to
1397 the board or obtain a temporary practice permit from or pay any fee to the board.

1398 SECTION 117. Said subsection (h) of said section 87B of said chapter 112, as so
1399 appearing, is hereby further amended by striking out, in line 110, the figure “(3)” and inserting in
1400 place thereof the following figure:- (2).

1401 SECTION 118. Said subsection (h) of said section 87B of said chapter 112, as so
1402 appearing, is hereby further amended by striking out, in line 126, the figure “(4)” and inserting in
1403 place thereof the following figure:- (3).

1404 SECTION 119. Said subsection (h) of said section 87B of said chapter 112, as so
1405 appearing, is hereby further amended by striking out, in line 133, the figure “(5)” and inserting in
1406 place thereof the following figure:- (4).

1407 SECTION 120. Said subsection (h) of said section 87B of said chapter 112, as so
1408 appearing, is hereby further amended by striking out, in line 139, the figure “(6)” and inserting in
1409 place thereof the following figure:- (5).

1410 SECTION 121. Section 222 of said chapter 112, as so appearing, is hereby amended
1411 by adding the following subsection:-

1412 (e) Notwithstanding clauses (iii) and (iv) of subsection (d), an applicant shall be eligible
1413 for licensure as a home inspector without meeting the requirements of said clause (iii) or said
1414 clause (iv) of said subsection (d) if the applicant: (i) is a professional engineer licensed pursuant
1415 to sections 81D to 81T, inclusive; and (ii) has performed not less than 50 home inspections under
1416 the supervision of a licensed home inspector.

1417 SECTION 122. Section 3 of chapter 121C of the General Laws, as so appearing, is
1418 hereby amended by striking out, in line 55, the word “MOBD” and inserting in place thereof the
1419 following words:- the secretary.

1420 SECTION 123. Section 4 of said chapter 121C, as so appearing, is hereby amended by
1421 striking out, in line 9, the words “, MOBD and to the director,” and inserting in place thereof the
1422 following words:- the secretary.

1423 SECTION 124. Section 5 of said chapter 121C, as so appearing, is hereby amended by
1424 striking out, in line 21, the words “MOBD and” and inserting in place thereof the following
1425 word:- the.

1426 SECTION 125. Said section 5 of said chapter 121C, as so appearing, is hereby further
1427 amended by striking out, in lines 67 and 68, the words “MOBD and the director” and inserting in
1428 place thereof the following words:- the secretary.

1429 SECTION 126. Said section 5 of said chapter 121C, as so appearing, is hereby further
1430 amended by striking out, in lines 81 and 82, the words “MOBD and director” and inserting in
1431 place thereof the following words:- the secretary.

1432 SECTION 127. Section 6 of said chapter 121C, as so appearing, is hereby amended by
1433 striking out, in line 28, the words “MOBD and director” and inserting in place thereof the
1434 following words:- the secretary.

1435 SECTION 128. Said section 6 of said chapter 121C, as so appearing, is hereby further
1436 amended by striking out, in lines 44 and 45, the words “department of housing and community
1437 development” and inserting in place thereof the following words:- secretary.

1438 SECTION 129. Section 10 of said chapter 121C, as so appearing, is hereby amended by
1439 striking out, in line 5, the words “MOBD and the director” and inserting in place thereof the
1440 following words:- the secretary.

1441 SECTION 130. Section 100 of chapter 143 of the General Laws, as so appearing, is
1442 hereby amended by striking out, in lines 9 and 10, the words “specialized stretch energy code”
1443 and inserting in place thereof the following words:- current and future specialized stretch energy
1444 codes.

1445 SECTION 131. Section 12 of chapter 156C of the General Laws, as so appearing, is
1446 hereby amended by striking out subsection (d) and inserting in place thereof the following 3
1447 subsections:-

1448 (d) The fee for the filing of the certificate of organization required by subsection (a) shall
1449 be \$100. The fee for the filing of the annual report required by subsection (c) shall be \$200 for
1450 the first annual report, \$300 for the second annual report, \$400 for the third annual report and
1451 \$500 for the fourth annual report and for each annual report filed thereafter. Such fees shall be
1452 paid to the state secretary at the time the certificate of organization or the annual report is filed.

1453 (e) Notwithstanding the fees set forth in subsection (d), if a limited liability company: (i)
1454 is established for the purpose of holding title to real property; (ii) owns assets in excess of
1455 \$1,000,000; or (iii) is expected to own assets in excess of \$1,000,000 within the subsequent 12
1456 month period, then the fee for the filing of the certificate of organization required by subsection
1457 (a) shall be \$500 and the fee for the filing of each annual report required by subsection (c) shall
1458 be \$500 beginning with the annual report that includes an affirmative attestation of any of the

1459 conditions set forth in clauses (i) to (iii), inclusive, of the preceding sentence. Such fees shall be
1460 paid to the state secretary at the time the certificate of organization or the annual report is filed.

1461 (f) The person filing the certificate of organization or annual report shall in every instance
1462 attest as to whether the limited liability company: (i) is established for the sole purpose of
1463 holding title to real property; (ii) owns assets in excess of \$1,000,000; or (iii) is expected to own
1464 assets in excess of \$1,000,000 within the subsequent 12 month period. A person making such
1465 filing who makes an inaccurate attestation shall be subject to a civil fine of \$10,000 for each
1466 occurrence. Such certification shall be the basis for determining eligibility under subsection (e).

1467 SECTION 132. Section 134 of chapter 164 of the General Laws, as so appearing, is
1468 hereby amended by striking out, in lines 103 and 104, the words “Renewable Energy Trust Fund,
1469 established pursuant to section 9” and inserting in place thereof the following words:-
1470 Climatetech Investment Fund established pursuant to section 15.

1471 SECTION 133. Said chapter 164 is hereby further amended by adding the following
1472 section:-

1473 Section 152. (a) As used in this section, the followings words shall, unless the context
1474 clearly requires otherwise, have the following meanings:

1475 “Economic development rates”, standardized utility tariffs and discounted rates offered
1476 by a distribution company designed to attract new businesses to the commonwealth and promote
1477 expansion by businesses already located within the commonwealth.

1478 “Special contracts”, discounted utility rates negotiated between distribution companies
1479 and large new businesses locating to the commonwealth or large new businesses expanding
1480 within the commonwealth.

1481 (b)(1) Each distribution company shall offer an economic development rate and special
1482 contracts; provided, however, that economic development rates and special contracts shall not
1483 shift costs to or increase costs for any other utility customer in the commonwealth.

1484 (2) Each distribution company shall develop guidelines for large new businesses locating
1485 to the commonwealth or large new businesses expanding in the commonwealth to seek a special
1486 contract. The rates, contracts and guidelines shall be as consistent as practicable between the
1487 distribution companies.

1488 (c) Economic development rates may include associated requirements, including, but not
1489 limited to: (i) job creation or retention requirements; (ii) capital investment commitments; (iii)
1490 participation in energy efficiency or demand response programs; and (iv) periodic progress
1491 reporting on requirements.

1492 (d) Each distribution company may, as necessary, request modifications to any approved
1493 economic development rate and guidelines to seek a special contract with the department to
1494 accommodate changed circumstances.

1495 (e) Not later than 1 month prior to filing a new or amended economic development rate or
1496 guidelines to seek a special contract with the department, each distribution company shall present
1497 the proposed rate and guidelines to the executive office of economic development and the
1498 executive office of energy and environmental affairs.

1499 SECTION 134. Section 7A of chapter 271 of the General Laws, as appearing in the 2024
1500 Official Edition, is hereby amended by striking out, in lines 140 and 141, the words “three
1501 bazaars in any single calendar year nor shall such organization conduct more than”.

1502 SECTION 135. Item 7002-1509 of section 2 of chapter 140 of the acts of 2024 is hereby
1503 amended by adding the following words:- or other similar visa programs.

1504 SECTION 136. Section 3 of chapter 214 of the acts of 2024 is hereby amended by
1505 striking out the figure “2026” and inserting in place thereof the following figure:- 2029.

1506 SECTION 137. Said section 3 of said chapter 214 is hereby further amended by inserting
1507 after the word “Matching” the following words:- , Fiscal Resilience.

1508 SECTION 138. Section 4 of said chapter 214 is hereby further amended by inserting after
1509 the word “Matching” the following words:- , Fiscal Resilience.

1510 SECTION 139. Said chapter 214 is hereby further amended by inserting after section 4
1511 the following section:-

1512 SECTION 4A. Notwithstanding section 2EEEEEE of chapter 29 of the General Laws or
1513 any other general or special law to the contrary, the secretary of administration and finance shall
1514 expend \$200,000,000 from the Commonwealth Federal Matching, Fiscal Resilience and Debt
1515 Reduction Fund established in said section 2EEEEEE of said chapter 29, in consultation with the
1516 executive office of education, the executive office of labor and workforce development and the
1517 executive office of economic development, as a bridge funding reserve to support institutions of
1518 higher education in the commonwealth; provided, that \$175,000,000 shall be expended to
1519 support public institutions of higher education in the commonwealth; provided further, that

1520 \$25,000,000 shall be expended to support private institutions of higher education in the
1521 commonwealth that are nonprofit organizations; provided further, that said funds shall enable
1522 public and private institutions of higher education in the commonwealth to adapt to federal
1523 funding uncertainty, loss or diminishment of federal research funding, to encourage advancement
1524 of scientific research, enhance employment opportunities and talent development and to enable
1525 participation in partnerships and joint ventures related to research and innovation; provided
1526 further, that said amounts may be used as flexible funding support for public and private
1527 institutions of higher education in the commonwealth to fund direct and indirect costs of
1528 research, to retain talent and preserve the pace of scientific discovery in the commonwealth;
1529 provided further, that said amounts may be used as a talent retention and extension reserve to
1530 fund positions in research and teaching, including graduate, post doctorate and other early career
1531 research professionals that would otherwise be unfunded due to reductions in federal indirect
1532 rates, to build a bridge to future funding levels and sources; provided further, that said amounts
1533 may be used to fund research opportunities, partnerships and joint ventures to support research
1534 activity, employment and advance innovation and opportunity in the commonwealth, including
1535 considerations of regional impact and geographic equity, including, but not limited to,
1536 opportunities related to advanced manufacturing and technology, agricultural science and
1537 technology, bioengineering and life sciences, civil engineering and advanced construction
1538 materials, climate and environmental science, ecology, education and child development,
1539 electronics, energy, fisheries and wildlife science and management, forestry science and
1540 management, marine science and technology, medical science and technology, meteorology and
1541 atmospheric science, nursing science, public health and applied health sciences, and robotics;
1542 provided further, that the executive office for administration and finance shall submit quarterly

1543 reports to the clerks of the house of representatives and the senate and the house and senate
1544 committees on ways and means detailing expenditures under this section and said sums shall be
1545 made available through the fiscal year ending June 30, 2028; and provided further, that the
1546 executive office for administration and finance may transfer any funds available under this
1547 section as necessary to carry out the purposes of this section.

1548 SECTION 140. Item 7002-1522 of section 2 of chapter 238 of the acts of 2024 is hereby
1549 amended by striking out the words “technologies developed with the assistance of” and inserting
1550 in place thereof the following words:- technologies, with preference for companies receiving.

1551 SECTION 141. Item 7002-1523 of said section 2 of said chapter 238 is hereby amended
1552 by striking out the words “proteins developed with the assistance of” and inserting in place
1553 thereof the following words:- proteins, with preference for companies receiving.

1554 SECTION 142. Said chapter 238 is hereby further amended by striking out section 320
1555 and inserting in place thereof the following section:-

1556 SECTION 320. Subsection (ii) of section 6 of chapter 62 of the General Laws, inserted
1557 by section 194, and section 38UU of chapter 63 of the General Laws, inserted by section 212,
1558 shall take effect for taxable years beginning on or after January 1, 2027.

1559 SECTION 143. Said chapter 238 is hereby further amended by striking out section 324
1560 and inserting in place thereof the following section:-

1561 SECTION 324. Section 316 shall take effect on January 1, 2033.

1562 SECTION 144. Section 97 of chapter 14 of the acts of 2025 is hereby amended by
1563 striking out the words “January 1, 2026” and inserting in place thereof the following words:-
1564 September 1, 2027.

1565 SECTION 145. Notwithstanding any general or special law to the contrary, the members
1566 serving on the advisory board on employee ownership appointed by the governor pursuant to
1567 subsection (a) of section 204 of chapter 6, amended by section 3, on the effective date of this act
1568 shall continue to serve for the remainder of their current terms as originally appointed. Upon the
1569 expiration of the terms of such members, the governor shall appoint 2 members to serve for a
1570 term of 1 year, 3 members to serve a term of 2 years, 3 members to serve a term of 3 years and 3
1571 members to serve for a term of 4 years. Upon the expiration of such terms, the governor shall
1572 appoint all members to serve a term of 4 years.

1573 SECTION 146. Notwithstanding any general or special law to the contrary, any
1574 unexpended funds held by the Massachusetts Alternative and Clean Energy Investment Trust
1575 Fund established in section 35FF of chapter 10 of the General Laws and the Renewable Energy
1576 Trust Fund established in section 9 of chapter 23J of the General Laws shall transfer to the
1577 Climatetech Investment Fund established in section 15 of chapter 23J of the General Laws.

1578 SECTION 147. (a) Notwithstanding any general or special law to the contrary, if the
1579 economic assistance coordinating council awards less than the full amount of tax credits
1580 authorized by subsection (c) of section 3D of chapter 23A of the General Laws, if the
1581 Massachusetts Life Science Center awards less than the full amount of tax credits authorized by
1582 subsection (d) of section 5 of chapter 23I of the General Laws or if the Massachusetts clean
1583 energy center awards less than the full amount of tax credits authorized by subsection (d) of

section 16 of chapter 23J of the General Laws, then, in each case, the balance of unallocated tax credits and the funds budgeted to finance that balance may be carried forward to the next calendar year with the approval of the secretary of administration and finance, in consultation with the secretary of economic development.

(b) Notwithstanding any general or special law to the contrary, the secretary of administration and finance, in consultation with the secretary of economic development, shall have the discretion to reallocate some or all of the tax credits that are carried forward pursuant to subsection (a) among and between the tax credit programs established pursuant to section 3A of chapter 23A of the General Laws, section 5 of chapter 23I of the General Laws or section 16 of chapter 23J of the General Laws. Any credits carried forward or reallocated shall increase, for the calendar year in which the carry forward or reallocation occurs, the annual cap or limitation otherwise applicable to the receiving program by the amount of such credits carried forward or reallocated.

(c) Annually, not later than March 1, the secretary of administration and finance, in consultation with the secretary of economic development, shall submit a report to the house and senate committees on ways and means setting forth the amount of tax credits, if any, carried forward and reallocated pursuant to subsections (a) and (b) in the prior calendar year. The report shall state the adjusted cap applicable to each tax credit program for the upcoming calendar year.

SECTION 148. (a) There shall be a working group on micromobility consisting of: the registrar of motor vehicles or a designee, who shall serve as chair; the administrator of the highway division of the Massachusetts Department of Transportation or a designee; the secretary of public safety and security or a designee; the commissioner of insurance or a designee; the

1606 commissioner of conservation and recreation or a designee; the commissioner of public health or
1607 a designee; 1 representative of the Massachusetts Municipal Association who shall appointed by
1608 the secretary of the Massachusetts Department of Transportation; 1 representative of the
1609 micromobility device industry who shall be appointed by the secretary of transportation; 1
1610 representative of a citizen advocacy group who shall be appointed by the secretary of
1611 transportation; 1 representative of the insurance industry who shall be appointed by the
1612 commissioner of insurance; 1 representative of the Fire Chiefs Association of Massachusetts who
1613 shall be appointed by the secretary of public safety and security; and 1 representative of the
1614 Massachusetts Chiefs of Police Association who shall be appointed by the secretary of public
1615 safety and security.

1616 (b) The working group shall develop recommendations for a regulatory scheme and
1617 legislation, if necessary, for the operation of micromobility devices, as provided in the report of
1618 the special commission on micromobility dated January 2026. The working group shall make
1619 recommendations for requirements for micromobility registration or identification decal,
1620 licensure to operate, clarification of the roles of dealers and manufacturers, education, speed
1621 restrictions, signage, travel allowances, insurance requirements, fines and penalties and
1622 additional operation and safety standards and requirements for micromobility devices, including
1623 whether operators and passengers of a powered micromobility device classified as speed tier 0
1624 shall be required to wear protective headgear, regardless of age.

1625 (c) The working group shall develop a standardized form to report crashes and incidents
1626 involving a motor vehicle, a vulnerable user, as defined in section 1 of chapter 90 of the General
1627 Laws, or any micromobility device, as defined in said section 1 of said chapter 90. The
1628 standardized form shall be used by any municipal, county or state law enforcement official or

1629 emergency medical services provider who responds to a crash or incident involving a motor
1630 vehicle, a vulnerable user or any micromobility device. The corresponding report for each crash
1631 or incident shall be transmitted to the registrar of motor vehicles. The registrar of motor vehicles
1632 shall maintain a publicly accessible database of the standardized form reports; provided,
1633 however, that no personally identifying information shall be published in the database.

1634 (d) Not later than December 31, 2027, the working group shall complete its work and
1635 issue a report of its findings, recommendations and any proposed legislation to be published on
1636 its website and filed with the clerks of the house of representatives and the senate and the joint
1637 committee on transportation.

1638 SECTION 149. (a) Not later than 6 months after the effective date of this act, distribution
1639 companies shall file with the department of public utilities an economic development rate and
1640 guidelines for large new businesses locating to the commonwealth or large new businesses
1641 expanding in the commonwealth to seek a special contract, pursuant to section 152 of chapter
1642 164 of the General Laws, inserted by section 133.

1643 (b) Upon receipt of the filing required pursuant to subsection (a), the department of
1644 public utilities shall conduct a proceeding to approve, deny or modify such proposal; provided,
1645 however, that the department may only approve such proposal if it finds that the proposed
1646 economic development rate and guidance does not shift costs to or increase costs to any other
1647 utility customers in the commonwealth; and provided further, that the proposal either supports or
1648 does not hinder the achievement of the statewide greenhouse gas emissions limits and sublimits
1649 under chapter 21N of the General Laws.

1650 SECTION 150. Notwithstanding any general or special law to the contrary, the
1651 unexpended and unencumbered balances of the bond-funded authorizations in the following
1652 accounts shall cease to be available for expenditure 180 days after the effective date of this act:
1653 7002-8041 and 7002-8049.

1654 SECTION 151. Notwithstanding any general or special law to the contrary, to meet the
1655 expenditures necessary in carrying out section 2, the state treasurer shall, upon receipt of a
1656 request by the governor, issue and sell bonds of the commonwealth in an amount to be specified
1657 by the governor from time to time but not exceeding, in the aggregate, \$425,100,000. All bonds
1658 issued by the commonwealth, as aforesaid, shall be designated on their face “An Act Relative to
1659 Massachusetts Winning Global Investment, Talent, and Innovation” and shall be issued for a
1660 maximum term of years, not exceeding 30 years, as the governor may recommend to the general
1661 court pursuant to section 3 of Article LXII of the Amendments to the Constitution; provided,
1662 however, that all such bonds shall be payable not later than June 30, 2061. All interest and
1663 payments on account of principal on such obligations shall be payable from the General Fund.
1664 Bonds and interest thereon issued under the authority of this section shall, notwithstanding any
1665 other provision of this act, be general obligations of the commonwealth.

1666 SECTION 152. Notwithstanding any general or special law to the contrary, the first
1667 report required pursuant to subsection (f) of section 17 of chapter 23J of the General Laws,
1668 inserted by section 31, shall be due not later than 1 year after the effective date of this act.

1669 SECTION 153. Not later than 270 days after the effective date of this act, each electric
1670 company shall submit to the gridtech deployment advisory board established in section 17 of

1671 chapter 23J, inserted by section 31, the processes the electric company plans to implement to
1672 address gridtech deployment barriers internal to the electric company.

1673 SECTION 154. Not later than 270 days after the effective date of this act, the gridtech
1674 deployment advisory board established in section 17 of chapter 23J, inserted by section 31, shall
1675 develop and vote to file with the department of public utilities a process for the department to
1676 review, on an expedited basis, requests for limited waivers of prior department orders to alleviate
1677 gridtech deployment barriers. Such process shall be limited to reviewing waivers of prior
1678 department orders that are time-bound and finite in scope.

1679 SECTION 155. Not later than December 31, 2026, the executive office for administration
1680 and finance shall update regulations to effectuate and implement sections 86 to 97, inclusive, of
1681 chapter 150 of the acts of 2024.

1682 SECTION 156. Not later than 1 year after the effective date of this act, the commissioner
1683 of public health shall promulgate regulations as required by section 250 of chapter 111 of the
1684 General Laws, inserted by section 110.

1685 SECTION 157. Not later than 1 year after the effective date of this act, the executive
1686 office of housing and livable communities shall implement the training program in section 37 of
1687 chapter 23B of the General Laws, inserted by section 8.

1688 SECTION 158. Section 7 shall take effect on January 1, 2028.

1689 SECTION 159. Sections 42, 45 to 47, inclusive, 49 to 51, inclusive, 60, 62, 71 and 74
1690 shall take effect on July 1, 2027.

1691 SECTION 160. Sections 41 and 48 shall take effect for all municipalities upon the
1692 effective date of this act; provided, however, that for municipalities that adopted a zoning
1693 ordinance or by-law requiring some form of site plan review prior to the effective date of this act,
1694 sections 41 and 48 shall not be effective with respect to such zoning ordinance or by-law until 1
1695 year after the effective date of this act.

1696 SECTION 161. Section 134 shall take effect on January 1, 2027.

1697 SECTION 162. Sections 96, 101, 104, 105 and 107 to 109, inclusive, shall take effect on
1698 January 1, 2028.

1699 SECTION 163. Sections 91 to 95, inclusive, 97 to 100, inclusive, 102, 103 and 106 shall
1700 take effect 90 days after the effective date of this act.

1701 SECTION 164. Sections 43, 61, 72 and 75 shall take effect on September 1, 2031.